



SAFESPORT CODE FOR THE U.S. OLYMPIC AND PARALYMPIC MOVEMENT

EFFECTIVE JULY 1, 2024

SAFESPORT CODE FOR THE U.S. OLYMPIC AND PARALYMPIC MOVEMENT

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SAFESPORT CODE FOR THE U.S. OLYMPIC AND PARALYMPIC MOVEMENT

Effective July 1, 2024

I. AUTHORITY

The U.S. Center for SafeSport (Center) is recognized by the United States Congress, the United States Olympic & Paralympic Committee (USOPC), and the National Governing Bodies (NGBs) as the official safe sport organization for all Olympic, Paralympic, Pan American and Para Pan American sports in the United States.

II. ADMINISTRATION AND COMPLIANCE

The Code is administered by the Center. The USOPC, NGBs, and Local Affiliated Organizations (LAOs) must comply, in all respects, with these policies and procedures and shall be deemed to have incorporated the provisions into their relevant policies as if they had set them out in full therein.

NGBs and the USOPC are prohibited from interfering in, attempting to interfere in, or influencing the outcome of the Center's investigations. See 36 USC § 220541(f)(4).

Participants are responsible for knowing the information outlined herein and, by virtue of being a Participant, have expressly agreed to the jurisdiction of the Center and this Code's policies and procedures, including those governing arbitration. The Center reserves the right to make changes to the Code as necessary. Once posted online, Notice has been provided and changes are effective immediately unless otherwise noted.

In the event that any party brings any action against the other related to this Code, the parties agree that the venue of such action shall be vested exclusively in the United States District Court for the District of Colorado.¹

III. APPLICATION

The Code applies to Participants, as defined below. To effectuate its mandate to protect those involved in amateur athletics from sexual or other forms of abuse, the Center assesses a Participant's fitness and eligibility to be involved with amateur athletics. Participation in the private associations making up the Olympic & Paralympic Movement (the Movement) is a privilege, not a right.

¹ This provision is not intended in any way to waive or limit the requirement to arbitrate as set forth herein.

IV. JURISDICTION OF THE CENTER

A. Exclusive Jurisdiction

The Center has the exclusive jurisdiction to investigate and resolve allegations that a Participant engaged in one or more of the following:

1. Sexual Misconduct, including without limitation child sexual abuse and any misconduct that is reasonably related to an underlying allegation of Sexual Misconduct;
2. Criminal Charges or Dispositions involving Child Abuse or Sexual Misconduct;
3. Misconduct Related to Reporting, where the underlying allegation involves Child Abuse or Sexual Misconduct;
4. Misconduct Related to Aiding and Abetting, Abuse of Process, or Retaliation, when it relates to the Center's process;
5. Other Inappropriate Conduct, as defined herein.

B. Discretionary Jurisdiction

The Center has discretionary jurisdiction to investigate and resolve allegations that a Participant engaged in one or more of the following:

1. Non-sexual Child Abuse;
2. Emotional and Physical Misconduct, including Stalking, Bullying Behaviors, Hazing, and Harassment;
3. Criminal Charges or Dispositions not involving Child Abuse or Sexual Misconduct;
4. Minor Athlete Abuse Prevention Policy or other similar Proactive Policy violations;
5. Misconduct Related to Aiding and Abetting, Abuse of Process, or Retaliation, when it relates to the processes of the USOPC, an NGB, an LAO, or any other organization under the Center's jurisdiction.

If the Center exercises discretionary jurisdiction, it will use the resolution procedures set forth herein.

C. Jurisdictional Reassessment

The Center may reassess its jurisdictional decision at any time.

V. JURISDICTION OF THE USOPC, NGBs, and LAOs

- A.** Before the Center expressly exercises jurisdiction over particular allegations regarding a particular Participant, the relevant organization (the USOPC, NGB, or LAO) has the authority to implement necessary and appropriate measures, up to and including a suspension, to address any allegations of misconduct.
- B.** When the relevant organization has reason to believe that the allegations presented fall within the Center’s exclusive jurisdiction, the organization—while able to impose measures—may not investigate or resolve those allegations.
- C.** When the allegations presented fall within the Center’s discretionary jurisdiction, the organization may investigate and resolve the matter, unless and until such time as the Center expressly exercises jurisdiction over the particular allegations.
- D.** For conduct occurring in competition or field of play, the USOPC, NGBs, and LAOs may timely impose a penalty consistent with the sport’s competition rules and regulations. Nothing in this section affects the ongoing obligation of all Adult Participants, NGBs, and their LAOs to comply with the mandatory reporting provision set forth in this Code, nor does the implementation of a penalty in any way affect the Center’s ability to pursue an investigation and, when necessary, impose an additional Sanction.
- E.** The Center will issue a Notice of Exercise of Jurisdiction to the USOPC, NGB, or LAO when the Center determines it has jurisdiction over an allegation of Prohibited Conduct.
 - 1. Upon the Center’s issuance of a Notice of Exercise of Jurisdiction, any temporary measures previously imposed by the USOPC, NGB, or LAO will be automatically and immediately adopted by the Center as its own, and will be applicable throughout the Movement, and will remain in effect unless and until the Center modifies those measures.
 - 2. The relevant organization may implement any necessary safety plan(s), temporary measure(s), or make employment² or membership³ decisions, or impose penalties as outlined in Section V.D. The NGB shall inform the Center of any safety plan(s), temporary measures(s), employment or membership decisions, or penalties as outlined in Section V.D. it or its LAO imposes within 72 hours of imposition. The USOPC, NGBs, and LAOs are responsible for resolving any complaints, appeals, or challenges made to their above-mentioned decisions pursuant to their policies and procedures and the Ted Stevens Act.

² Employment-related decisions are specific to the employer-employee relationship. If the USOPC, NGB, or LAO conducts an investigation related to an employment decision involving allegations over which the Center has exclusive jurisdiction or has exercised discretionary jurisdiction, the USOPC, NGB, or LAO shall provide all information gathered, to include interviews, to the Center. *See* Section X. Failure to provide such information may constitute Interference. *See* Section II.

³ Nothing in this provision authorizes the USOPC, NGB, or LAO to conduct a parallel investigation involving allegations falling within the Center’s exclusive jurisdiction as outlined in Section V.B. or as to a matter involving the Center’s discretionary jurisdiction as outlined in Section V.C. Such conduct may constitute Interference. *See* Section II.

3. When the Center expressly exercises jurisdiction over allegations regarding a particular Participant, the relevant organization(s) cannot issue—in response to those allegations—a suspension, except for penalties as referenced in Section V.D.

VI. APPLICABLE PROCEDURES

The applicable procedures for reporting, investigating, and resolving alleged misconduct depend on the nature of the misconduct, as set forth in the Code. The procedures set forth herein will be applied to any matter over which the Center exercises jurisdiction. The procedures set forth by the adjudicating body (USOPC, NGB, or LAO) will be applied to any matter over which the Center does not exercise jurisdiction.

VII. ENFORCEMENT AUTHORITY

A. Enforcement Responsibility

The USOPC, NGB, and LAO are responsible for enforcing Temporary Measures and Sanctions imposed by the Center, as set forth below. 36 USC § 220505(d)(1)(C). The USOPC, NGB, and LAO are also responsible for enforcing all terms of a Conditional or Alternative Resolution. All Temporary Measures, Sanctions, and terms of a Conditional or Alternative Resolution imposed by the Center shall be in effect immediately upon issuance.

B. Reciprocal Enforcement

Center-issued Temporary Measures, Sanction(s), and terms of Conditional or Alternative Resolutions shall be reciprocally enforced by and between all NGBs, LAOs, and the USOPC.

C. Reviewing Temporary Measures and Sanctions

NGBs and the USOPC shall immediately review communications from the Center concerning Temporary Measures, Sanctions, and terms of Conditional or Alternative Resolutions for implementation. If the NGB or the USOPC determines an error or omission in such communication has been made, it shall notify the Center as soon as practicable, but no later than three Days after receipt.

D. Communications to Stakeholders

The Center shall provide a Summary Document and/or a Summary of Decision, which the USOPC, NGBs, or LAOs may provide

to parties who need to know in order to enforce Temporary Measures, Conditional or Alternative Resolutions, and/or Sanctions. The USOPC, the NGBs, and LAOs shall establish a method to communicate Temporary Measures, Sanctions, and terms of Conditional or Alternative Resolutions to their relevant stakeholders.

E. Requirements to Register or Affiliate with a National Governing Body

To ensure enforcement, NGBs shall require any organization that wishes to register as an LAO with the organization (e.g., using the rules or procedures of an NGB), to agree to and comply with the Code, the requirements set forth in the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017, and to enforce any Sanction(s) or Temporary Measure(s) imposed by the Center.

VIII. DEFINITIONS

A. Advisor

An Advisor may be any person, including an attorney. However, a party or witness involved in the investigation or hearing, or an employee of, board member of, or legal counsel for the USOPC, an NGB, an LAO or the Center, cannot serve as an Advisor, except as noted for parents of Minor Claimants and Respondents.⁴

Advisors may be provided with the Center's Notice of Decision, Investigation Reports, or other work product deemed confidential under 36 USC § 220541(f)(4)(C) and Section XI.S. of the Code. Misuse or disclosure of confidential information by an Advisor may constitute a violation of the Code for the Participant(s) the Advisor represents, and/or the Advisor themselves if they are a Participant.

B. Adult

An individual who is 18 years of age or older.

C. Athlete

An athlete who meets the eligibility standards established by the NGB or Paralympic Sports Organization for the sport in which the athlete competes.

⁴ This provision does not interfere with the Team USA Athlete Ombuds' performance of statutorily mandated functions.

D. Child Abuse

The term “child abuse” has the meaning set forth in Section 203 of the Victims of Child Abuse Act of 1990 (34 U.S.C. § 20341) or any applicable state law.

E. Claimant

The person who is reported to have experienced conduct that constitutes a Code violation.

F. Consent

Consent is (a) informed (knowing), (b) voluntary (freely given), and (c) active (not passive). Consent must be demonstrated by clear words or actions, indicating that a person who is legally and functionally competent has indicated permission to engage in mutually agreed-upon sexual activity.

Consent to any one form of sexual activity does not automatically imply Consent for any other forms of sexual activity. Previous relationships or prior Consent does not imply Consent to future sexual activity. Once given, Consent can be withdrawn through clear words or actions.

Consent cannot be obtained: (a) by force, (b) by taking advantage of the Incapacitation of another, when the person initiating sexual activity knew or reasonably should have known that the other was Incapacitated, (c) from someone who lacks legal capacity, (d) when a Power Imbalance exists.

1. Force

Force includes (a) the use of physical violence, (b) threats, (c) intimidation, and (d) coercion.

- a. Physical violence means that a person is exerting control over another person using physical force. Examples of physical violence include but are not limited to: hitting, punching, slapping, kicking, restraining, strangling, and brandishing or using any weapon.
- b. Threats are words or actions that would compel a reasonable person to engage in unwanted sexual activity. Examples include but are not limited to: threats to harm a person physically, to reveal private information to harm a person’s reputation, or to deny a person’s ability to participate in sport.

- c. Intimidation is an implied threat that menaces or causes reasonable fear in another person. A person's size, alone, does not constitute intimidation; however, a person's size may be used in a way that constitutes intimidation (e.g., blocking access to an exit).
- d. Coercion is the use of an unreasonable amount of pressure to gain intimate or sexual access. Coercion is more than an effort to persuade, entice, or attract another person to engage in sexual activity. When a person makes clear their decision not to participate in a form of Sexual Contact or Sexual Intercourse, their decision to stop, or their decision not to go beyond a certain sexual interaction, continued pressure can be coercive.

Whether conduct is coercive depends on: (i) the frequency of the application of the pressure, (ii) the intensity of the pressure, (iii) the degree of isolation of the person being pressured, and (iv) the duration of the pressure.

2. Legal Capacity

Minors cannot Consent to conduct of a sexual nature. While the legal age of Consent varies under state and federal law, the age of capacity under the Code is 18.

A close-in-age exception will be applied to any Consent-related policy violation between an Adult and a Minor, or between two Minors, when there is no Power Imbalance and when the age difference is no more than three years.

The following are not defenses and do not negate a potential Code violation involving another individual being at or below a certain specified age:

- a. Ignorance of the person's actual age;
- b. Misrepresentation of age by the person; or
- c. The Participant's bona fide belief that the person was at or over the specified age.

3. Incapacitation

Incapacitation means that a person lacks the ability to make informed, rational judgments about whether to engage in sexual activity. A person who is incapacitated is unable, temporarily or permanently, to give Consent because of mental or physical helplessness, sleep, unconsciousness, or lack of awareness that sexual activity is taking place. A person may be incapacitated because of consuming alcohol or other drugs, or due to a temporary or permanent physical or mental health condition.

Incapacitation is a state beyond drunkenness or intoxication. A person is not necessarily incapacitated merely because of drinking or using drugs. The impact of alcohol and other drugs varies from person to person and is evaluated under the specific circumstances of a matter.

A Respondent's being impaired by alcohol or other drugs is not a defense to any violation of the Code.

The Consent construct can also be applied to other forms of non-sexual conduct, such as Hazing or other forms of Physical or Emotional Misconduct or Other Inappropriate Conduct.

G. Days

Unless expressly provided otherwise, the term "Days" shall mean business days, which excludes weekends and national holidays.

H. Event

The term "Event" shall have the meaning set forth in the Victims of Child Abuse Act of 1990 (34 U.S.C. § 20341). As of the effective date of these policies and procedures, "Event" includes "travel, lodging, practice, competition, and health or medical treatment."

I. Local Affiliated Organization (LAO)

A regional, state or local club or organization that is directly affiliated with an NGB or that is affiliated with an NGB by its direct affiliation with a regional or state affiliate of said NGB. LAO does not include a regional, state, or local club or organization that is only a member of a National Member Organization of an NGB.

J. Minor or Child

An individual who is, or is believed by the Respondent to be, under the age of 18.

K. National Governing Body (NGB)

An amateur sports organization, a high-performance management organization, or a Paralympic sports organization that is certified by the United States Olympic & Paralympic Committee under 36 USC § 220521. This definition shall also apply to the USOPC, or other sports entity approved by the USOPC, when they have assumed responsibility for the management or

governance of a sport included on the program of the Olympic, Paralympic, Pan-American, or Parapan American Games. This would include any organization, member of that organization, or Participant that has subjected itself to the jurisdiction of the Center.

L. Participant⁵

1. Any individual who is seeking to be, currently is, or was at the time of any alleged Code violation:
 - a. A member or license holder of an NGB, LAO, or the USOPC;
 - b. An employee or board member of an NGB, LAO, or the USOPC;
 - c. Within the governance or disciplinary jurisdiction of an NGB, LAO, or the USOPC; or
 - d. Authorized, approved, or appointed by an NGB, LAO, or the USOPC to have regular contact with or authority over Minor Athletes.

M. Power Imbalance

A Power Imbalance refers to an actual or perceived unequal distribution of power and authority between individuals.

A Power Imbalance is presumed to exist, but may be rebutted, in (a) any coach-Athlete relationship or (b) any other relationship where a Participant has authority or control over another person, is in a position to confer, grant, or deny a benefit or advancement to the person, or is responsible for the physical or psychological well-being of the person.

Once a coach-Athlete relationship is established, there is a rebuttable presumption that a Power Imbalance exists throughout the coach-Athlete relationship (regardless of age) and is presumed to continue for Minor Athletes after the coach-Athlete relationship terminates until the Athlete reaches 25 years of age.

Examples in which a Power Imbalance may also exist, but is not presumed, include relationships between an Athlete and another Participant in positions such as sport specific health-care providers, sport science support staff, care or support persons, sport judges, referees or officials, or when an Intimate Relationship existed before the sport relationship (e.g., a relationship

⁵ For the purpose of evaluating whether an individual is considered a Participant per this provision, the analysis includes the date on which the alleged misconduct occurred and/or the date on which the conduct was reported to the Center through final resolution of the matter, including the period of any sanction imposed, specifically regarding allegations that a Respondent violated the terms of their Sanction, Temporary Measure(s), or term of a Conditional or Alternative Resolution.

between two spouses or life partners that preceded the sport relationship).

A Power Imbalance may also exist between one person and another based on the totality of the circumstances and depends on several factors, any one of which may be sufficient alone, including but not limited to: the nature and extent of any implied or perceived authority or control; the supervisory, evaluative, or other authority over the person; the actual relationship between the parties; the parties' respective roles; the nature and duration of the relationship; the age of the parties involved; whether there is an aggressor; whether there is a significant disparity in age, size, strength, or mental capacity; seniority; ability; public profile; gender identity or expression; sexual orientation; racial or ethnic identity; national origin; level of physical, intellectual, or other disability.

N. Respondent

A Participant who is alleged to have violated the Code.

O. Sanction

See Section XIII.

P. Support Person

A Support Person is any person who accompanies a Respondent, Claimant, or witness to provide emotional support and assistance. However, a party or witness involved in the investigation or hearing, or an employee of, board member of, or legal counsel for the USOPC, an NGB, an LAO or the Center, cannot serve as a Support Person, except as noted for parents of Minor Claimants and Respondents.⁶

A Support Person may be privy to confidential information. Misuse or disclosure of confidential information by a Support Person may constitute a violation of the Code for the Participant(s) the Support Person assists, and/or the Support Person themselves if they are a Participant.

Support Persons will not be provided with the Center's Notice of Decision, Investigation Reports, or other work product deemed confidential under 36 USC § 220541(f)(4)(C) and Section XI.S. of the Code.

⁶ This provision does not interfere with the Team USA Athlete Ombuds' performance of statutorily mandated functions.

Q. Third-Party Reporter

Reports brought by individuals other than the Claimant are referred to as “third-party reports” and those bringing them are “third party reporters.”

R. Temporary Measure

A Temporary Measure is a restriction, limitation, condition, or suspension of a Respondent’s ability to participate in the Movement that is imposed or adopted by the Center during a Center investigation.

IX. PROHIBITED CONDUCT

This section of the Code sets forth expectations for Participants related to Emotional, Physical, and Sexual Misconduct, including Bullying, Hazing, and Harassment.

The privilege of participation in the Movement may be limited, conditioned, suspended, terminated, or denied if a Participant’s conduct is or was inconsistent with this Code or the best interest of sport and those who participate in it.

It is a violation of the Code for a Participant to engage in or tolerate: (1) Prohibited Conduct, as outlined in the Code; (2) any conduct that would violate any current or previous standards promulgated by the U.S. Center for SafeSport, an NGB, an LAO, or the USOPC that are analogous to Prohibited Conduct and that existed at the time of the alleged conduct; or (3) any conduct that would violate community standards analogous to Prohibited Conduct that existed at the time of the alleged conduct, including then applicable criminal or civil laws.⁷

Prohibited Conduct includes:

- A. Criminal Charges or Dispositions
- B. Child Abuse
- C. Sexual Misconduct
- D. Emotional and Physical Misconduct, including Stalking, Bullying, Hazing, and Harassment

⁷ The focus of this provision is on community standards in place at the time of the alleged conduct. The question is: Would a reasonable person at the time the alleged conduct occurred have had notice that the alleged conduct would have violated community standards and norms as those standards were generally expressed in then applicable criminal or civil statutes or other applicable community standards? The Center need not establish every element of a community standard, nor must it apply any evidentiary standards or burdens of proof other than those provided in this Code.

- E. Other Inappropriate Conduct
- F. Aiding and Abetting
- G. Misconduct Related to Reporting
- H. Misconduct Related to the Center's Process
- I. Retaliation
- J. Violation of Minor Athlete Abuse Prevention Policies / Proactive Policies

A. Criminal Charge or Disposition

It is a *per se* violation of the Code for a Participant to (a) be subject to a Criminal Charge analogous to Prohibited Conduct or (b) to have or been subject to a Criminal Disposition analogous to Prohibited Conduct. When assessing whether a Criminal Charge or Disposition is analogous to Prohibited Conduct, the Center may rely upon the underlying allegations, original charges, amended charges, or those to which a plea was entered.

Criminal Conduct is relevant to an individual's fitness to participate in sport. The age of a Criminal Charge or Disposition is not relevant to whether a violation of the Code occurred but may be considered for Sanctioning purposes. The Center reviews Criminal Charges or Dispositions involving sexual misconduct or Child Abuse *de novo*; any prior consideration or finding by an NGB, LAO, or the USOPC regarding a Criminal Disposition involving sexual misconduct or Child Abuse is not relevant to the Center's determination.

1. Definitions

a. Criminal Charge

A Criminal Charge includes (1) being arrested and presently subject to bond obligations or conditional release, (2) any pending criminal charge(s), or (3) active warrant(s) for arrest.

b. Criminal Disposition

A Criminal Disposition is any disposition or resolution of a criminal proceeding, other than an adjudication of not guilty, including, but not limited to: an adjudication of guilt or admission to a criminal violation, a plea to the charge or a lesser included offense, a plea of no contest, any plea analogous to an Alford or Kennedy plea, the disposition of the proceeding through a diversionary program, deferred adjudication, deferred prosecution, disposition of

supervision, conditional dismissal, juvenile delinquency adjudication, or similar arrangement.

2. Sex Offender Registry

A Participant who is currently on any state, federal, territorial, or tribal sex offender registry is ineligible to participate in the Movement.

3. Hearing Related to Criminal Charge or Disposition

A Participant who wishes to challenge the Center's Notice of Decision related to a Criminal Charge or Disposition may request a hearing concerning the Sanction only pursuant to Section XIV.14.

If the Center renders a Notice of Decision regarding a Participant's Criminal Charge or Disposition, and that Charge or Disposition is subsequently modified by a criminal court, the Participant may request that the matter be reopened by the Center, pursuant to Section XI.R. In instances where a pending criminal charge(s) resolves, in that the charge(s) is eventually dismissed, results in an acquittal, or results in a Criminal Disposition as defined above, a Respondent's request to reopen will always be granted and a new Notice of Decision issued.

B. Child Abuse

It is a violation of the Code for a Participant to engage in Child Abuse as defined in Section VIII.D.

C. Sexual Misconduct

It is a violation of the Code for a Participant to engage in Sexual Misconduct. Sexual Misconduct offenses include, but are not limited to:

1. Sexual Harassment
2. Nonconsensual Sexual Contact (or attempts to commit the same)
3. Nonconsensual Sexual Intercourse (or attempts to commit the same)
4. Sexual Exploitation
5. Exposing a Minor to Sexual Content/Imagery
6. Sexual Bullying Behavior

7. Sexual Hazing
8. Other Inappropriate Conduct of a Sexual Nature

1. Sexual Harassment

Sexual Harassment is any unwelcome physical or verbal conduct or any written, pictorial, or visual communication directed at an individual or group of individuals because of that individual's or group's actual or perceived sex (including pregnancy, childbirth, breastfeeding, and related circumstances), gender, sexual orientation, gender identity, or gender expression, which may include acts of aggression, intimidation, or hostility, when the conditions outlined in (a), (b), or (c), below, are present:

- a. Submission to such conduct or communication is made, either explicitly or implicitly, a term or condition of any person's employment, education, standing in sport, or participation in Events, sports programs, or activities;
- b. Submission to, objection to, or rejection of such conduct or communication is used as the basis for employment, education, or sporting decisions affecting the individual; or
- c. Such conduct or communication creates a hostile environment.

A "hostile environment" exists when the conduct or communication does or is likely to interfere with, limit, or deprive any individual of the opportunity to participate in any employment, education, or sports program, Event, or activity. Conduct or communications must be deemed a hostile environment from both a subjective and an objective perspective.

1. Subjectively hostile environment - From the perspective of the Claimant, the environment was perceived as hostile (e.g. informing someone else about the alleged conduct is sufficient to establish subjective hostility – the Claimant felt the conduct was sufficiently hostile it merited telling someone about it). The fact that an individual tolerated, participated in, or seemed agreeable or unaffected in the past is not dispositive.
2. Objectively hostile environment – The conduct or communication(s) must create an environment a reasonable person in the Claimant's position would find hostile.

Whether a hostile environment exists depends on the totality of known circumstances, including, but not limited to:

- i. The frequency of the conduct or communication(s), recognizing that a single incident may rise to the level of harassment;

- ii. The type or nature of the conduct or communication(s);
- iii. The duration of the conduct or communication(s);
- iv. The context or location where the conduct or communication took place;
- v. Whether the conduct or communication(s) was threatening;
- vi. The effect of the conduct or communication(s) on the Claimant's mental or emotional state;
- vii. Whether the conduct or communication(s) was directed by or at more than one person;
- viii. Whether the conduct or communications(s) arose in the context of other discriminatory conduct;
- ix. Whether a Power Imbalance exists between the individual alleged to have engaged in harassment and the individual alleging the harassment;
- x. Any use of epithets, slurs, or other conduct or communication(s) that is humiliating, offensive, or degrading; and
- xi. Whether the conduct or communication(s) reflects stereotypes about an individual or group of similarly situation individuals.

Purported Consent by the person subjected to Sexual Harassment is not a defense, regardless of the person's perceived willingness to cooperate or participate.

2. Nonconsensual Sexual Contact

It is a violation of the Code for a Participant to engage in Sexual Contact without Consent.

Sexual Contact is any intentional touching of a sexual nature, however slight, with any object or body part (as described below), by a person upon another person.

Sexual Contact includes but is not limited to: (a) kissing, (b) intentional touching of the breasts, buttocks, groin or genitals, whether clothed or unclothed, or intentionally touching of another with any of these body parts; and (c) making another touch themselves, the Participant, or someone else with or on any of these body parts.

3. Nonconsensual Sexual Intercourse

It is a violation of the Code for a Participant to engage in Sexual Intercourse without Consent.

Sexual Intercourse is any penetration, however slight, with any object or body part (as described below), by a person upon another person.

Sexual Intercourse includes (a) vaginal penetration by a penis, object, tongue, or finger; (b) anal penetration by a penis, object, tongue, or finger; and (c) any contact, no matter how slight, between the mouth of one person and the genitalia of another person.

4. Sexual Exploitation

It is a violation of the Code for a Participant to engage in Sexual Exploitation. Sexual Exploitation occurs when a Participant purposely or knowingly, or attempts or threatens to:

- a. Allow(s) third parties to observe private sexual activity from a hidden location (e.g., closet) or through electronic means (e.g., Skype or live-streaming of images) without Consent of all parties involved in the sexual activity;
- b. Record(s) or photograph(s) private sexual activity or a person's intimate parts (including genitalia, groin, breasts, or buttocks) without Consent of all parties in the recording or photo;
- c. Engage(s) in voyeurism (e.g., watching private sexual activity or viewing another person's intimate parts when that person would have a reasonable expectation of privacy), without Consent of all parties being viewed;
- d. Disseminate(s), show(s), or post(s) content depicting private sexual activity or a person's intimate parts (including genitalia, groin, breasts, or buttocks) without prior Consent of the person depicted, referenced, or involved in the content;
- e. Expose(s) another person to a sexually transmitted infection or virus without that person's knowledge;
- f. Engage(s) in solicitation of prostitution, or prostituting or trafficking another person; or
- g. Require(s) a third party to visually observe or listen to any of the conduct described in subsections a-f above.

5. Exposing a Minor to Sexual Content/Imagery

An Adult Participant violates this Code by intentionally exposing a Minor to content or imagery of a sexual nature, including but not limited to, pornography, sexual comment(s), sexual gestures, or sexual situation(s).

This provision does not exclude the possibility that similar behavior between Adults could constitute other Sexual Misconduct, as defined in the Code.

6. Sexual Bullying Behavior

Sexual Bullying Behavior is repeated or severe behavior(s) of a sexual nature that are (a) aggressive, (b) directed at a Minor, and (c) intended or likely to hurt, control, or diminish the Minor emotionally, physically, or sexually. Sexual Bullying-like Behaviors directed at Adults are addressed under other forms of misconduct, such as Sexual Hazing or Sexual Harassment.

Sexual Bullying Behavior also includes Bullying Behavior related to an individual or group of individuals because of that individual's or group's actual or perceived sex (including pregnancy, childbirth, breastfeeding, and related medical conditions) gender, sexual orientation, gender identity, or gender expression, even if the acts do not involve conduct of a sexual nature.

Examples of Sexual Bullying Behavior may include, without limitation, ridiculing or taunting that is sexual in nature or based on gender or sexual orientation (real or perceived), gender traits or behavior, or teasing someone about their looks or behavior as it relates to sexual attractiveness.

7. Sexual Hazing

Sexual Hazing is any conduct of a sexual nature that is intended or likely to subject another person, whether physically, mentally, emotionally, or psychologically, to anything that may endanger, abuse, humiliate, degrade, or intimidate the person as a condition of joining or being socially accepted by a group, team, or organization.

Sexual Hazing also includes hazing related to gender, sexual orientation, gender identity, or gender expression, even if the acts do not involve conduct of a sexual nature.

Purported Consent by the person subjected to Sexual Hazing is not a defense, regardless of the person's perceived willingness to cooperate or participate.

8. Other Inappropriate Conduct of a Sexual Nature

It is a violation of the Code for a Participant to engage in any Other Inappropriate Conduct of a sexual nature, as further defined in the corresponding sections below.

D. Emotional and Physical Misconduct

It is a Code violation for a Participant to engage in Emotional or Physical Misconduct, when that misconduct occurs within a

context that is reasonably related to sport, which includes, without limitation:

1. Emotional Misconduct
2. Physical Misconduct
3. Bullying Behavior
4. Hazing
5. Harassment

1. Emotional Misconduct

Emotional Misconduct includes (a) Verbal Acts, (b) Physical Acts, (c) Acts that Deny Attention or Support, (d) Criminal Conduct, or (e) Stalking. Emotional Misconduct is determined by the objective behaviors, not whether harm is intended or results from the behavior.

a. Verbal Acts

Repeatedly and excessively verbally assaulting or attacking someone personally in a manner that serves no productive training or motivational purpose.

b. Physical Acts

Repeated or severe physically aggressive behaviors, including but not limited to, throwing sport equipment, water bottles or chairs at or in the presence of others, punching walls, windows or other objects.

c. Acts that Deny Attention or Support

Ignoring or isolating a person for extended periods of time with the intent to deny attention or support, including routinely or arbitrarily excluding a Participant from participation.

d. Criminal Conduct

Emotional Misconduct includes any act or conduct described as emotional abuse or misconduct under federal or state law (e.g., child abuse, child neglect).

e. Stalking

Stalking occurs when a person purposefully engages in a course of conduct directed at a specific person, and knows or should know, that the course of conduct would cause a reasonable person to (i) fear for their safety, (ii) fear for the safety of a third person, or (iii) to experience substantial emotional distress.

“Course of conduct” means at least two or more acts, in which a person directly, indirectly, or through third parties, by any action, method, device, or means, follows, monitors, observes, surveils, threatens, or communicates to or about another person, or interferes with another person’s property. “Substantial emotional distress” means significant mental suffering or anguish.

Stalking also includes “cyber-stalking,” wherein a person stalks another using electronic media, such as the internet, social networks, blogs, cell phones, texts, or other similar devices or forms of contact.

2 Physical Misconduct

Physical Misconduct is any intentional contact or non-contact behavior that causes, or reasonably threatens to cause, physical harm to another person.

Physical Misconduct does not include conduct reasonably accepted as part of sport or conduct reasonably accepted as part of Participant’s participation. For example, hitting, punching, and kicking are well-regulated forms of contact in combat sports, but have no place in non-combat sports such as swimming.

Physical Misconduct may include, without limitation:

a. Contact violations

Punching, beating, biting, striking, strangling, or slapping another; intentionally hitting another with objects, such as sporting equipment; encouraging or knowingly permitting an Athlete to return to play prematurely following a serious injury (e.g., a concussion) and without the clearance of a medical professional.

b. Noncontact violations

Isolating a person in a confined space, such as locking an Athlete in a small space; forcing an Athlete to assume a painful stance or position for no athletic purpose (e.g., requiring an athlete to kneel on a harmful surface); withholding,

recommending against, or denying adequate hydration, nutrition, medical attention or sleep; providing alcohol to a person under the legal drinking age; providing illegal drugs or non-prescribed medications to another.

c. Criminal Conduct

Physical Misconduct includes any act or conduct described as physical abuse or misconduct under federal or state law (e.g., child abuse, child neglect, assault).

3. Bullying Behavior

Bullying Behavior is repeated or severe behavior(s) that are (a) aggressive (b) directed at a Minor, and (c) intended or likely to hurt, control, or diminish the Minor emotionally, physically, or sexually. Bullying-like behaviors directed at Adults are addressed under other forms of misconduct, such as Hazing or Harassment.

Petty slights, minor inconveniences, and lack of good manners do not constitute Bullying Behavior unless the slights, inconveniences, or lack of manners, when taken individually or in combination and under the totality of the circumstances, meet the standards set forth above.

Bullying Behavior may include, without limitation, repeated or severe:

a. Physical

Hitting, pushing, punching, beating, biting, striking, kicking, strangling, slapping, spitting at, or throwing objects (such as sporting equipment) at another person.

b. Verbal

Ridiculing, taunting, name-calling, or intimidating or threatening to cause someone harm.

c. Social, including cyberbullying

Use of rumors or false statements about someone to diminish that person's reputation; using electronic communications, social media or other technology to harass, frighten, intimidate or humiliate someone; socially excluding someone and asking others to do the same.

d. Criminal Conduct

Bullying Behavior includes any conduct described as bullying under federal or state law.

4. Hazing

Hazing is any conduct that is intended or likely to subject another person, whether physically, mentally, emotionally, or psychologically, to anything that may endanger, abuse, humiliate, degrade, or intimidate the person as a condition of joining or being socially accepted by a group, team, or organization.

Purported Consent by the person subjected to Hazing is not a defense, regardless of the person's perceived willingness to cooperate or participate.

Hazing includes but is not limited to:

a. Contact Acts

Tying, taping, or otherwise physically restraining another person; beating, paddling or other forms of physical assault.

b. Noncontact Acts

Requiring or forcing the consumption of alcohol, illegal drugs or other substances, including participation in binge drinking and drinking games; personal servitude; requiring social actions (e.g., wearing inappropriate or provocative clothing) or public displays (e.g., public nudity) that are illegal or meant to draw ridicule; excessive training requirements demanded of only particular individuals on a team that serve no reasonable or productive training purpose; sleep deprivation; otherwise unnecessary schedule disruptions; withholding of water or food; restrictions on personal hygiene.

c. Criminal Acts

Any act or conduct that constitutes hazing under applicable federal or state law.

5. Harassment

Harassment is repeated or severe conduct that is intended or likely to:

a. Cause fear, humiliation, or annoyance;

- b. Offend or degrade;
- c. Create a hostile environment (as defined in Section IX.C.1.c. above);
- d. Reflect a discriminatory bias in an attempt to establish dominance, superiority, or power over an individual or group based on age, race, ethnicity, culture, religion, national origin, or mental or physical disability; or
- e. Any act or conduct described as harassment under federal or state law.

Whether conduct is harassing depends on the totality of the circumstances, including the nature, frequency, intensity, location, context, and duration of the behavior.

Petty slights, minor inconveniences, and lack of good manners do not constitute Harassment unless the slights, inconveniences, or lack of manners, when taken individually or in combination and under the totality of the circumstances, meet the standards set forth above.

E. Other Inappropriate Conduct

Other Inappropriate Conduct, as defined below, may be non-sexual or sexual in nature.

1. Intimate Relationship

An Adult Participant violates this Code by engaging, or attempting to engage in an Intimate Relationship where a Power Imbalance exists.⁸

An Intimate Relationship is a close personal relationship—other than a familial relationship—that exists independently and outside of the sport relationship. Whether a relationship is intimate is based on the totality of the circumstances, including: regular contact or interactions outside of or unrelated to the sport relationship (electronically or in person), the parties' emotional connectedness, the exchange of gifts, ongoing physical or intimate contact or sexual activity, identity as a couple, the sharing of sensitive personal information, or intimate knowledge about each other's lives outside the sport relationship.

⁸ Engaging or attempting to engage in an Intimate Relationship may include consideration of “grooming” behaviors. “Grooming” describes the process whereby a person engages in a series or pattern of behaviors with a goal of engaging in sexual misconduct. Grooming is initiated when a person seeks out a vulnerable minor. Once selected, offenders will then earn the minor's trust, and potentially the trust of the minor's family (or guardian). After the offender has engaged the minor in sexually inappropriate behavior, the offender seeks to maintain control over them. Grooming occurs through direct, in-person or online contact.

2 Intentional Exposure of Private Areas

An Adult Participant violates this Code by intentionally exposing breasts, buttocks, groin, or genitals, or induces another to do so, to an Adult when there is a Power Imbalance, or to a Minor.

3 Inappropriate Physical Contact

- a. An Adult Participant violates this provision by engaging in Inappropriate Physical Contact with another when there is a Power Imbalance. Such inappropriate contact includes, but is not limited to, intentionally:
 - i. touching, slapping, or otherwise contacting the buttocks or genitals;
 - ii. excessively touching or hugging; or
 - iii. kissing.
- b. A Minor Participant violates this provision by engaging in Inappropriate Physical Contact with another person without Consent. Such inappropriate contact includes, but is not limited to, intentionally touching, slapping, or otherwise contacting the buttocks, genitals, or breasts of another, whether clothed or unclothed.

4 Willful Tolerance

An Adult Participant violates this Code by willfully tolerating any form of Prohibited Misconduct, when there is a Power Imbalance between that Participant and the individual(s) who are being subjected to the Prohibited Conduct.

F. Aiding and Abetting

Aiding and Abetting occurs when an Adult Participant knowingly:

- 1. Aids, assists, facilitates, promotes, or encourages the commission of Prohibited Conduct by a Participant;
- 2. Allows any person who has been identified as Suspended or otherwise Ineligible by the Center to be in any way associated with or employed by an organization affiliated with or holding itself out as affiliated with an NGB, LAO, the USOPC, or the Olympic & Paralympic Movement;
- 3. Allows any person who has been identified as Suspended or otherwise Ineligible by the Center to coach or instruct

Participants;

4. Allows any person who has been identified as Ineligible by the Center to have ownership interest in a facility, an organization, or its related entities, if that facility/organization/related entity is affiliated with or holds itself out as affiliated with an NGB, LAO, the USOPC, or the Olympic & Paralympic Movement;
5. Provides any coaching-related advice or service to an Athlete who has been identified as Suspended or otherwise Ineligible by the Center;
6. Allows any person to violate the term of any Temporary Measure, Sanction, or Conditional or Alternative Resolution.

In addition, a Participant also violates the Code if someone acts on behalf of the Participant to engage in Aiding or Abetting, or if the guardian, family member, Advisor or Support Person of a Participant, including Minor Participants, engages in Aiding or Abetting.

G. Misconduct Related to Reporting

1. Failure to Report

An Adult Participant's reporting obligations are outlined in detail in Section X. of the Code. Failure to comply with any provision of Section X.A-E. by an Adult Participant is a violation of the Code.

2. Intentionally Filing a False Allegation

In addition to constituting misconduct, filing a knowingly false allegation that a Participant engaged in Prohibited Conduct may violate state criminal law and civil defamation laws. Any Participant making a knowingly false allegation in a matter over which the Center exercises jurisdiction shall be subject to disciplinary action by the Center.

- a. An allegation is false if the events reported did not occur, and the person making the report knows the events did not occur.
- b. A false allegation is different from an unsubstantiated allegation; an unsubstantiated allegation means there is insufficient supporting evidence to determine whether an allegation is true or false. Absent demonstrable misconduct, reporting an unsubstantiated allegation alone is not grounds for a Code violation.

H. Abuse of Process

1. A Participant, or someone acting on behalf of a Participant, commits Abuse of Process by engaging in conduct which does, or is likely to, directly or indirectly abuse or interfere with the Center's process. The following conduct constitutes Abuse of Process:
 - a. Falsifying, distorting, or misrepresenting information, the resolution process, or an outcome;
 - b. Destroying or concealing information;
 - c. Attempting to discourage an individual's proper participation in, or use of, the Center's processes;
 - d. Harassing or intimidating (verbally or physically) any person involved in the Center's processes before, during, or following proceedings (including up to, through, and after any review by an Arbitrator);
 - e. Publicly disclosing a Claimant's identifying information⁹;
 - f. Failing to comply with a Temporary Measure, Sanction, or term of a Conditional or Alternative Resolution;
 - g. Distributing or otherwise publicizing confidential materials as outlined in Section XI.S. below, except as required by law or as expressly permitted by the Center;
 - h. Influencing or attempting to influence another person to commit Abuse of Process;
 - i. Having another individual take any part of or complete any Center-required training for them;
 - j. Using unreasonable pressure in an attempt to compel an individual to participate in the Center's processes when the individual has made clear their decision not to participate or to stop participating;
 - k. Surreptitiously recording any part or stage of the Center's process, including but not limited to: interviews, Temporary Measures hearings, and arbitrations;
 - l. Interfering in, attempting to interfere in, or attempting to influence the outcome of any Center investigation, hearing,

⁹ The Protecting Young Victims from Abuse and Safe Sport Authorization Act of 2017 requires that the Center "protect the privacy and safety of the [Claimant]." However, a Claimant may waive this provision by choosing to publicly disclose their own identifying information at any time.

or process;

m. Any other conduct which is likely to or does directly or indirectly abuse or interfere with the Center's process.

A Participant violates this provision if someone acts on behalf of the Participant and engages in any of the above conduct, including a Participant's Advisor or Support Person, or the guardian or family member of a Minor Participant. In such a case, the Participant and, if the party acting on behalf of the Participant is also a Participant, that person may be Sanctioned.

2. It is a *per se* violation of the Code for a Participant to fail to complete the SafeSport® Trained Core Course or Refresher as required as part of a Sanction.

I. Retaliation

It is a violation of the Code for a Participant or someone acting on behalf of a Participant, an NGB, LAO, the USOPC, or any entity under the Center's jurisdiction, to retaliate or attempt to retaliate.

Retaliation is any adverse action or threat to take any adverse action against any person related to allegations of Prohibited Conduct or involvement in any activity related to the reporting or investigative processes of the Center or other relevant entities under the Center's jurisdiction.

Adverse actions include, but are not limited to: threatening, intimidating, harassing, coercing, or any other action or conduct with the potential effect of dissuading any reasonable person from reporting Prohibited Conduct or engaging in activity related to any reporting or investigative processes.

Retaliation may take place at any time, including before, during, or after an individual's reporting of alleged Prohibited Conduct or engagement in the processes of the Center or other relevant entity within the Center's jurisdiction.

Retaliation may be present even where there is a finding that no violation occurred. Retaliation does not include good-faith actions lawfully pursued in response to a report of a Code violation.

J. Minor Athlete Abuse Prevention Policies / Proactive Policies

It is a violation of the Code for a Participant to violate any provision of the Minor Athlete Abuse Prevention Policies or other proactive policies adopted by the NGBs, LAOs, or the USOPC. Proactive policies set standards for professional boundaries, minimize the appearance of impropriety, and have the effect of preventing boundary violations and prohibiting grooming

tactics.¹⁰ Tailored to a specific sport, context, legal structure or constituency, such policies may address overnight travel rules (e.g., preventing unrelated Adult Participants and Minors from sharing rooms under specified circumstances), massages, social media and electronic communications, photography, locker rooms, one-on-one meetings and gifting.

X. REPORTING

A. General Requirements

1. Adult Participants must know their reporting requirements under this Code, state law, and federal law. Ignorance or mistake as to one's reporting obligation is not a defense.
2. Nothing in this Code shall be construed to require a victim of Child Abuse or other misconduct to self-report.
3. The reporting requirements under this section are an individual obligation of each Adult Participant. Reporting to a supervisor or administrator does not relieve an Adult Participant of the obligations to report as specified under this section. Adult Participants must report even if they believe someone else has already reported.
4. Adult Participants must follow any other reporting requirements imposed by their organization including adherence to state and federal laws.
5. The obligation to report is broader than reporting a pending charge or criminal arrest of a Participant; it requires reporting to the Center any conduct which, if true, would constitute Sexual Misconduct or Child Abuse.
6. The obligation to report to the Center is an ongoing one and is not satisfied simply by making an initial report. The obligation includes reporting, on a timely basis, all information of which an Adult Participant becomes aware, including the names of witnesses, third-party reporters, and Claimants.
7. The obligation to report includes providing the personally identifying information of a potential Claimant to the extent known at the time of the report, as well as a duty to reasonably supplement the report as to identifying information learned at a later time.

¹⁰ "Grooming" describes the process whereby a person engages in a series or pattern of behaviors with a goal of engaging in sexual misconduct. Grooming is initiated when a person seeks out a vulnerable minor. Once selected, offenders will then earn the minor's trust, and potentially the trust of the minor's family (or guardian). After the offender has engaged the minor in sexually inappropriate behavior, the offender seeks to maintain control over them. Grooming occurs through direct, in-person or online contact.

8. Participants should not investigate or attempt to evaluate the credibility or validity of allegations involving Sexual Misconduct or Child Abuse. Participants making a good faith report are not required to prove the reports are true before reporting to the Center or appropriate authorities.
9. Reports to the Center can be made:
 - a. Through the U.S. Center for SafeSport’s online reporting form, www.uscenterforsafesport.org/report-a-concern.
 - b. By phone during regular business hours (Monday-Friday, 8:00 AM MT – 4:00 PM MT) at 1-833-5US-SAFE.

B. Reporting Requirements related to Child Abuse, including Child Sexual Abuse

1. An Adult Participant who learns of information or reasonably suspects that a child has suffered an incident of child abuse, including sexual abuse, must immediately:
 - a. Make a report to law enforcement¹¹ **AND**
 - b. Make a report to the U.S. Center for SafeSport **AND**
 - c. Comply with any other applicable reporting requirements under state law.¹²
2. Reporting to the Center alone is not sufficient. You must report to both the Center and to law enforcement, and comply with any other applicable state or federal laws.
3. Child Abuse includes incidents that involved a victim who is a minor at the time of the alleged incident, even if the victim is now an Adult.

C. Reporting Requirements Relating to Sexual Misconduct

1. An Adult Participant who learns of information or reasonably suspects that an incident(s) of Sexual Misconduct has occurred, must report the incident(s) directly to the Center immediately, but no later than 24 hours.
2. This reporting requirement applies regardless of whether the suspected victim is an Adult or Minor.

¹¹ See section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. § 20341).

¹² Information about state reporting requirements is available at <https://www.childwelfare.gov/topics/responding/reporting>

3. If the Sexual Misconduct involves a minor, it must be reported as Child Abuse pursuant to Section X.B above.

D. Additional Misconduct that Adult Participants must report to the Center:

1. Criminal Charge(s) or Disposition(s) involving sexual misconduct or misconduct involving Minors.
2. Misconduct related to the Center's process, including suspected incident(s) of:
 - a. Aiding and Abetting
 - b. Abuse of Process
3. Retaliation.

E. Emotional & Physical Misconduct and Proactive Policies

1. An Adult Participant who learns of information or reasonably suspects that an incident(s) of Emotional or Physical Misconduct prohibited under the Code has occurred must report it to the organization (USOPC, NGB, or LAO) with which the Participant is affiliated.
2. An Adult Participant who learns of information or reasonably suspects a violation of the Minor Athlete Abuse Prevention Policies or other proactive policies must report it to the organization (USOPC, NGB, or LAO) with which the Participant is affiliated.
3. In lieu of reporting to the USOPC, NGB, or LAO, an Adult Participant can satisfy the reporting requirements in Section X.E by reporting to the Center.

F. Anonymous Reports

Reports may be made anonymously to the Center. Anonymity means the Center will not know the personally identifying information of the reporter. It does not mean that the underlying information will be protected.

However, an anonymous report may limit the Center's ability to investigate and respond to a report, and if an Adult Participant reports anonymously, it may not be possible for the Center to verify that mandatory reporting obligations have been satisfied.

Consequently, the Center strongly encourages Adult Participants to provide their name and contact information when reporting.

G. Confidentiality for Third-Party Reporters

Unless necessary to the Center's investigation or resolution of a matter, the Center does not disclose a Third-Party Reporter's personally identifying information. When such disclosure is necessary, the Center will inform the Third-Party Reporter if possible.

H. Reporting Options for Claimants

A Claimant may choose to make a report to the Center to pursue resolution under these procedures and may also choose to make a report to law enforcement or pursue available civil or administrative remedies. A Claimant may pursue one, some, or all of these options at the same time. For reports outside the Center's exclusive jurisdiction, a Claimant may also report to their NGB or LAO.

A Claimant who wishes to pursue criminal action in addition to, or instead of, making a report under these procedures should contact law enforcement or legal counsel directly.

I. Privileged Communications

An Adult Participant who is a medical or mental health professional¹³ is not required to report information related to the reasonable suspicion of Sexual Misconduct involving an Adult Claimant to the Center if such a report would violate the medical or mental health professional's ethical obligations pursuant to state or federal law, namely privileged communications.

An Adult Participant who is duly authorized by state or federal law as a medical or mental health professional shall report all information related to a reasonable suspicion of Child Abuse as required per Section X.B.

A patient may waive privilege at any time and request an Adult Participant who is a medical or mental health professional to report information related to a violation of the Code to the Center.

This provision is not intended to and does not supersede any state or federal law regarding mandatory reporting obligations and privileged communications between medical or mental health professionals and their patients.

Privilege may be waived upon an allegation by a patient that the medical or mental health professional engaged in misconduct

¹³ Medical and mental health professionals include only those persons licensed by a state or federal licensing board or agency.

under the Code.

XI. RESOLUTION PROCEDURES

A. Initiating Proceedings

When the Center receives a report of allegations that fall within its exclusive authority, or exercises jurisdiction over allegations within its discretionary authority, it will notify the relevant NGB, or the USOPC, conduct a preliminary inquiry, and, if appropriate, undertake an investigation to determine whether a Participant violated the Code.

B. Substantive Standards and Procedural Rules

When the alleged conduct by a Participant occurred prior to the effective date of the Code, the Center may apply other substantive standards in effect at the time of the conduct that are analogous to Prohibited Conduct, including then effective criminal laws or previous standards promulgated by the Center, NGB, LAO, or USOPC. However, in all cases, these resolution procedures will be used to investigate and resolve matters, regardless of when the incident of Prohibited Conduct occurred.

C. Standard of Proof

The Center bears the burden of gathering sufficient evidence to reach a determination, based on the preponderance of the evidence, that a Participant violated the Code. A “preponderance of the evidence” means “more likely than not.”

D. Consolidation

Matters involving more than one Claimant or more than one Respondent may, in the Center’s discretion, be consolidated into a single matter.

E. Related Proceedings

1. Effect of Criminal or Civil Proceedings

Because the standards for finding a violation of criminal law are different from the standards for finding a violation of the Code, the resolution of a criminal proceeding without a Criminal Disposition is not determinative of (but may be relevant to) whether a violation of the Code has occurred. Conduct may violate the Code even if the Respondent is not charged, prosecuted or convicted for the behavior that could constitute a potential violation of the Code, is acquitted of a criminal

charge, or legal authorities decline to prosecute.

Apart from the application of the Code as it relates to Criminal Charge(s) and Disposition(s), the Center's resolution will not be precluded merely because (a) a civil case or criminal charges involving the same incident or conduct have been filed, (b) criminal charges have been dismissed or reduced; or (c) a civil lawsuit has been settled or dismissed.

2 No Waiver of Other Legal Remedies

Participating in the Center's process does not extend or restrict a person's right to file charges or claims regarding the underlying allegations with any other agency, law enforcement, or court. This is not intended to create or grant a right of action against the Center or in any way waive the Center's, the USOPC's, an NGB's, or any other applicable party or entity's immunity, if any, under the Protecting Young Victims from Abuse and Safe Sport Authorization Act of 2017 or any other legal theory.

F. Coordinating with Law Enforcement

The Center may contact any law enforcement agency that is conducting its own investigation to inform that agency that the Center is also investigating, to ascertain the status of the criminal investigation, and to determine the extent to which any evidence collected by law enforcement may be available to the Center in its investigation. At the request of law enforcement, the Center may delay its investigation temporarily while an external law enforcement agency is gathering evidence. The Center will resume its investigation when notified that law enforcement has completed the evidence- gathering stage of its criminal investigation. The Center may also provide some or all of its case information, documentation, or evidence to law enforcement.

G. Statute of Limitations or Other Time Bars

The Center assesses a Participant's fitness to participate in sport. As past conduct informs current fitness, no criminal, civil, or rules-based statutes of limitations or time bars of any kind prevent the Center from investigating, assessing, considering, and adjudicating any relevant conduct regardless of when it occurred.

H. Methods of Resolution & Holds

1. Resolutions

a. Conditional Resolution

At any time before a matter is final, the Center may, in its discretion, offer a Conditional Resolution to a Respondent who was a Minor under the age of 13 at the time of the alleged misconduct.¹⁴ A Conditional Resolution is neither an admission of misconduct nor does it constitute a finding of a Code violation. The Center will consider the facts and circumstances gathered during the Center's process to determine the appropriate term(s) of the Conditional Resolution, including but not limited to imposition of safety condition(s) or educational requirement(s). A Conditional Resolution is a voluntary, binding agreement between the Minor Respondent's Parent/Guardian and/or the Minor Respondent and the Center. A Conditional Resolution is not eligible for arbitration nor is it a settlement.

Failure to comply with the agreed upon term(s) may result in revocation of the Conditional Resolution, additional allegation(s) of misconduct under the SafeSport Code, or a Formal Resolution to include Sanction(s).

A case that is closed following a Conditional Resolution will not be reopened, absent extraordinary circumstances or failure to comply with any agreed upon terms.

b. Alternative Resolution

At any time before a matter is final, the Center may, in its discretion, offer an Alternative Resolution to a Respondent who was a Minor between the ages of 13 and 17 at the time of the alleged misconduct. An Alternative Resolution requires a Minor Respondent to acknowledge behavior(s) that may have violated the Code, but does not constitute a finding of a Code violation. The Center will consider the facts and circumstances gathered during the Center's process to determine the appropriate term(s) of the Alternative Resolution, including but not limited to imposition of safety condition(s) or educational requirement(s). An Alternative Resolution is a voluntary, binding agreement between the Minor Respondent's Parent/Guardian and/or the Minor Respondent and the Center; an Alternative Resolution is not eligible for arbitration nor is it a settlement.

Failure to comply with the agreed upon term(s) of the Alternative Resolution may result in revocation of the Alternative Resolution, additional allegation(s) of misconduct under the SafeSport Code, and or Formal Resolution to include Sanction(s).

A case that is closed following an Alternative Resolution will not be reopened, absent extraordinary circumstances or failure to comply with any agreed upon terms.

¹⁴ The Center may, in its discretion, offer a Conditional Resolution to a Minor Respondent over the age of 12.

c. Informal Resolution

At any time before a matter is final, the Center may, in its discretion, offer an Informal Resolution which gives the Respondent an opportunity to accept responsibility for a policy violation and resolve the matter. The Center will determine the appropriate Sanction given the facts and circumstances gathered during the Center's process. An Informal Resolution is not a settlement but does constitute a final and binding disposition of the matter which is not eligible for arbitration. The outcome and Sanctions of an Informal Resolution may be published by the Center to the Centralized Disciplinary Database.

d. Formal Resolution

A Formal Resolution occurs after the Center issues an Investigative Report and Notice of Decision. A Respondent may request a hearing if a violation is found.

2 Administrative Closure

The Center, in its discretion, may administratively close a matter after exercising jurisdiction. A case that is Administratively Closed will not be reopened, absent extraordinary circumstances.

Administrative Closures include the following:

- a. No Applicable Policy: The alleged violation, even if true, would not rise to the level of a Code violation.
- b. Previously Adjudicated: The specific allegations reported to the Center are confirmed to have been appropriately adjudicated and/or formally resolved by the USOPC, NGB, or LAO, and no new information that materially changes the determination and outcome of the previous adjudication has been presented to the Center.
- c. Admonishment: The Center determines the alleged misconduct may presently or, if the conduct continues, in the future violate the Code and is best addressed with a Respondent via an educational conversation, followed by a Letter of Admonishment. The Letter of Admonishment may be used as an aggravator in any subsequent case(s) involving conduct of a similar nature. An Admonishment does not constitute a finding or admission by the Respondent of a Code violation. An Admonishment constitutes a final and binding disposition of the matter.
- d. Letter of Concern (Minor Respondents only): The Center determines that alleged misconduct may presently or, if the conduct continues, in the future violate the Code and is best addressed with a Minor Respondent and/or their

Parent/Guardian with an educational conversation, followed by a Letter of Concern. The Letter of Concern may be used as an aggravator in any subsequent case(s) involving conduct of a similar nature. A Letter of Concern does not constitute a finding or admission by the Minor Respondent of a Code violation. A Letter of Concern constitutes a final and binding disposition of the matter.

- e. Deceased Respondent: The Center confirms the Respondent is deceased.
- f. Unsupported Allegations: The reported Claimant(s) deny that they have experienced misconduct, and there is no corroborative evidence to support the allegation(s).

3. Administrative Hold

An Administrative Hold is the Center's recognition that there is currently insufficient information to proceed with an investigation; however, the Center holds these matters thereby retaining jurisdiction and may re-open them at any time when sufficient information is made available. Administrative Holds may occur for any one or more of the following reasons:

- a. Insufficient Information: There is insufficient information to proceed with or continue a formal investigation regarding an alleged violation of the Code. Lack of party and/or witness participation and/or relevant documentary evidence impedes a full assessment of the allegations, and such participation and/or evidence, if they were to become available, would be necessary to determine investigatory finding(s) or policy application.
- b. Claimant Declined: The Center has made the requisite attempts to contact the Claimant and the Claimant has reported that they do not want to or are unable to participate in the Center's process at this time, and their participation is deemed necessary for the Center to proceed with an investigation.
- c. Non-Responsive Claimant: The Center has made the requisite attempts to contact the Claimant and the Claimant has been non-responsive, and their participation is deemed necessary for the Center to proceed with an investigation.
- d. Unidentified Claimant: The Center has received a report of misconduct which does not identify the Claimant. The Center has made the requisite attempts to contact the Third-Party Reporter/witnesses and the Center has been unable to identify a Claimant, and their participation is deemed necessary for the Center to proceed with an investigation.

4. Jurisdictional Hold

A Jurisdictional Hold occurs when the Center receives a report of misconduct allegedly perpetrated by a particular individual

who is not currently affiliated with or participating in the Movement but who was previously in sport. These matters are held by the Center until such time as the individual becomes or seeks to become a Participant in the Movement, at which time the matter will undergo the Center's investigative process.

I. Participation

1. Parties

The parties to an investigation and arbitration are the Center and the Respondent. During the investigation, the Claimant and Respondent will have an opportunity to submit information and relevant evidence, to identify witnesses who may have relevant information, and to submit questions that they believe should be directed by the investigator to each other or to any witness.

Neither the Claimant nor Respondent are required to participate in the investigation nor any form of resolution under these procedures. However, full cooperation and participation in the resolution process is important to ensure that all relevant information and evidence are presented so the Center can determine whether a Code violation occurred. If a Claimant or Respondent declines to cooperate or participate in an investigation, the Center will make its decision based on the available evidence; alternatively, the Center may, in its discretion, choose not to proceed.

- a. Where a Claimant declines or is otherwise unable to participate in an investigation or hearing, the Center's ability to resolve the allegations may be limited. In such cases, the Center may pursue the report if it is possible to do so without the Claimant's participation in the investigation or resolution (e.g., where there is other relevant evidence of the Prohibited Conduct, such as recordings, corroborating reports from other witnesses, or physical evidence). Even with such evidence, however, the Center may only be able to respond to the report in limited and general ways.
- b. If, prior to the Notice of Decision being issued, information or evidence pertaining to the known facts and circumstances of the investigation that are available to the Respondent, including but not limited to testimonial or documentary evidence, is not provided to the investigator, such information or evidence will not be considered by the Center or any Arbitrator in determining whether a violation of the Code occurred.

2. Advisors and Support Persons

Throughout the resolution process, Claimant(s) and Respondent(s) each have the right to choose and consult with an Advisor. The Center, in its discretion, may allow a Respondent or Claimant to have more than one Advisor upon a showing of good cause. In addition to an Advisor, a Claimant and Respondent may each have one Support Person who may be present at every

stage of the Center's process.

The Claimant and Respondent may each be accompanied by their respective Advisor(s) and/or Support Person at any meeting or proceeding related to the investigation, hearing, and resolution of a report under these procedures. While the Advisor may provide advice to the parties at any meeting or proceeding, they may not speak on behalf of the Claimant or Respondent, or otherwise participate in such meetings or proceedings except as provided herein. While the Support Person may provide support to the parties at any meeting or proceeding, they may not speak on behalf of the Claimant, Respondent, or witnesses, or otherwise participate in such meetings or proceedings.

A person may not be an Advisor or Support Person for both a Claimant and Respondent in the same or substantially related matters.

a. Minor Claimant and Respondent Parent-Advisors and Support Persons

While a Claimant or Respondent is a Minor, they each have the right to choose and consult with an Advisor(s). In addition to an Advisor, a Claimant or Respondent who is a Minor may each have one Support Person who may be present at every stage of the Center's process.

If the Minor Claimant or Respondent's chosen Advisor and/or Support Person is their parent, and the parent would be excluded as an Advisor or Support Person as outlined in Section VIII.A. or VIII.P., the Minor Claimant or Respondent may choose another Advisor and/or Support Person for the limited purpose of accompanying them during an interview.¹⁵ In this situation, the Parent-Advisor/Parent-Support Person may accompany the Minor Claimant or Respondent at any meeting or proceeding related to the investigation (except an interview), hearing, and resolution of a report under these procedures.

Once a Claimant or Respondent becomes an Adult, they must notify the Center of any requested changes to their chosen Advisor(s). Absent an affirmative change, the Center will continue communicating with the previously selected Advisor(s).

3. Witnesses

Although not all witnesses are Participants, witnesses who are Participants are expected to participate and cooperate in the

¹⁵ A "parent" includes a Minor Claimant's or Respondent's biological or adoptive parent or legal guardian.

Center's investigation and any associated proceedings.¹⁶ Any witness likely to provide testimonial evidence in an Arbitration, whether in person or by affidavit or declaration, must, if requested, consent to be interviewed by the Center within a reasonable time prior to any hearing.

Witnesses do not have a right to an Advisor but may have one Support Person.

4. Claimant's Request for Anonymity

A Claimant may request that personally-identifying information not be shared with a Respondent. The Center will seek to honor the Claimant's request(s) if it is possible to do so while also protecting the health and safety of the Claimant and the sporting community. However, the Center may not be able to proceed with an investigation or resolution of a matter if a Claimant requests anonymity.

5. Privacy

The Center is committed to protecting the privacy of all individuals involved in the investigation and resolution of reported allegations within the limits of federal and state laws. With respect to any report under these procedures, the Center, in its discretion, will make reasonable efforts to protect the privacy of individuals involved in the Center's process, while balancing the need to gather information to assess a report and to take steps to eliminate Prohibited Conduct.

Information will be shared as necessary with Center staff and counsel, witnesses, and the parties. It may also be necessary for the Center to notify the NGB or the USOPC (a) of an allegation involving a Participant from that organization; (b) if the Center implements a temporary measure; (c) of procedural status updates; and (d) of any Sanctions.

Parental/Guardian Notification

The Center reserves the right to notify guardians of Claimants regarding any health or safety risk within the limits of applicable federal and state laws.

J. Procedural Rights of Respondents

Federal law provides Respondents with certain procedural rights. 36 USC § 220541(a)(1)(H). For any action taken against a

¹⁶ Nothing in this Code shall be construed to require a victim of Child Abuse or other Prohibited Conduct to self-report, nor participate or cooperate in the Center's processes.

Respondent, including an investigation, the imposition of sanctions, or any other disciplinary action, the Center must provide procedural due process to the Respondent, which includes:

1. The provision of written notice of allegations against the Respondent;
2. The right to be represented by counsel or other Advisor;
3. An opportunity to be heard during the investigation;
4. A reasoned written decision from the Center if a violation is found;
5. The ability to challenge through arbitration any interim measures¹⁷ or sanctions imposed by the Center.

Federal law permits the Center to impose Temporary Measures or sanctions before providing an opportunity to arbitrate. 36 USC § 220541(a)(2)(A).

K. Recordings

No audio or video recording of any kind is permitted during interviews or meetings, except as authorized and conducted by the Center.

L. Prior or Subsequent Conduct

Prior or subsequent conduct of the Respondent may be considered for any purpose, including in determining pattern, knowledge, intent, motive, or absence of mistake. For example, evidence of a pattern of Prohibited Conduct by the Respondent, either before or after the incident in question, regardless of whether there has been a prior finding of a Code violation, may be deemed relevant to determining responsibility for the conduct under investigation. Determining the relevance of pattern evidence will be based on an assessment of whether the previous or subsequent conduct was substantially like the conduct under investigation or indicates a pattern of similar Prohibited Conduct.

Evidence relating to other sexual behavior or the sexual predisposition of the Claimant cannot be considered in any decision, nor admitted as evidence in any arbitration, unless the probative value of the use or admission of such evidence, as determined by the Center or the Arbitrator, as applicable, substantially outweighs the danger of—

- i. any harm to the alleged victim; and

¹⁷ In this Code, “interim measures” are referred to as “Temporary Measures.” See Section XII.

- ii. unfair prejudice to any party.

M. Relevance

The Center has the discretion to determine the relevance of any proffered evidence. In general, statements of opinion as to any person's general reputation for any character trait, rather than direct observations or reasonable inferences from the facts, will not be considered.

N. Investigation Report

A final Investigation Report will be prepared that sets forth the investigator's findings of fact. This report will be shared with the Claimant(s) and Respondent(s) upon issuance of the Notice of Decision. The Investigation Report and any attachments are considered confidential.

O. Notice of Decision

The Center will determine whether there is sufficient information, by a preponderance of the evidence, to support a finding that Respondent violated the Code. If there is a finding that the Respondent violated the Code, the Notice of Decision will note the violation and identify an appropriate sanction(s). The Claimant and Respondent will be provided the Notice of Decision. Such Notice of Decision will set forth any violation(s) of the Code, as supported by the rationale set forth in the Notice of Decision and Investigation Report; the Sanction(s) imposed against the Respondent (if applicable); and the rationale for any Sanction(s) imposed. The Notice of Decision is considered confidential; however, the outcome reflected in the Notice of Decision—including whether a violation was found, the nature of the underlying misconduct, and any Sanctions imposed—is not.

P. Requesting a Stay of the Sanction(s)

At any time, the Center—on its own or at the request of a Respondent—may stay a Sanction(s). Whether to stay a Sanction(s) is within the Center's sole discretion and is not reviewable.

Q. Requesting Arbitration Hearing

Upon issuance of a Notice of Decision, a Respondent has 10 Days to request a hearing before an Arbitrator. If Respondent does not make such a request within 10 Days, the Notice of Decision is no longer subject to review, except as permitted herein. If a Respondent timely requests that the Center grant an extension of time to request an Arbitration, the Center may, in its discretion,

grant such request.

R. Reopening a Matter

At any time, the Center—on its own or at the request of a Claimant or Respondent—may reopen a matter based upon new evidence that was previously unavailable or a change in circumstances that could substantially impact the original finding or Sanction. Whether to reopen a case is within the Center’s sole discretion and is not reviewable.

S. Confidentiality – Release/Use of Materials

The Center’s decisions, investigation reports, and other work product are confidential under 36 USC § 220541(f)(4)(C). The following documents or evidence related to the response and resolution process must remain confidential, in that they may not be disclosed outside of the proceedings, except as may be required by law or authorized by the Center: any Notice of Allegation(s), Temporary Measures Decision, Notice of Decision, the Investigation Report, and any documents or evidence, including interview statements of a Claimant, Respondent, or other witnesses, any audio recordings or transcripts of those recordings created as part of the investigative process, and all documents or evidence submitted to or prepared by the Arbitrator, including any hearing transcripts. Violation of this provision, including by an Advisor for an involved party, may constitute an Abuse of Process.

While the above listed documents must remain confidential, the relevant NGB or the USOPC, or its affiliates may disclose the outcome of the matter, including a copy of the Summary of Decision, to those parties or organizations with a need to know so that the outcome can be properly effectuated or understood.

Additionally, subject to the Abuse of Process provision (including the prohibition on identifying a Claimant), the Center does not impose any restrictions on a Claimant’s or Respondent’s ability to discuss the incident, their participation in the Center’s process, or the outcome of that process.

If any person or entity misrepresents the process, the underlying facts, or the outcome of a matter, the Center reserves the right to publicly correct the record.

XII. TEMPORARY MEASURES

A. By the Center

1. Timing

The Center may implement Temporary Measures at any time. A Temporary Measure shall be effective immediately upon notice, unless stated otherwise. Temporary Measure(s) will remain in effect until the Center expressly removes the Temporary Measure(s).

2. Considerations

When implementing a Temporary Measure, the Center evaluates: (i) the seriousness of the allegations and the circumstances of the case; (ii) whether the Respondent's continued participation in sport poses an ongoing or potential risk to the physical, emotional, or psychological well-being or safety of others, including but not limited to the Claimant, other Athletes, or the sport community; and (iii) whether the allegations against the Respondent are sufficiently serious that the Respondent's continued participation in the sport could be detrimental to the best interest of sport and those who participate in it.

When the allegations involve child sexual abuse, the age of those allegations shall not be considered and are not relevant to the assessment of Temporary Measures.

3. Measures

Temporary Measures may include, but are not limited to, altering training schedules, providing or requiring chaperones, implementing contact limitations, implementing measures prohibiting one-on-one interactions, and suspensions from participation in some or all aspects of sport activity. If measures require monitoring or chaperoning, the Respondent may be required to locate, arrange, and pay for some or all of those services as a condition of continued participation pending completion of the investigation.

4. Review by Arbitrator

In all instances in which a Temporary Measure is imposed by the Center, the Respondent may challenge the measure by requesting a hearing, in accordance with Section XII.B. below. Any objections as to arbitrability or the arbitration body's jurisdiction shall be made in accordance with Section XIV.11.A. Further, any conflicts of interests shall be made in accordance with Section XIV.11.B. and C.

5. Modifiable

The Center may impose, modify, or strike a Temporary Measure at any time.

6. Failure to Comply with Temporary Measures

Failure to comply with a Temporary Measure constitutes an independent violation of the Code.

B. Temporary Measures Hearings

1. Requesting a Hearing

At any time after imposition of a Temporary Measure, a Respondent may request a Temporary Measures hearing by sending a written request to the Center to Resolutions@safesport.org.¹⁸ After receiving a request for a Temporary Measures hearing, the Center will send a notice to the Respondent and the arbitration body's administrator informing them that a Temporary Measures hearing has been initiated.

2. Timing

An Arbitrator shall be appointed no later than 3 Days after receipt of payment by the arbitration body. A pre-hearing conference shall take place within 24 hours of the appointment of an Arbitrator. The Temporary Measures Hearing shall take place no later than 5 Days after the appointment of an Arbitrator. If Respondent requires a more expedited hearing, they must so state in writing in their Temporary Measures hearing request to Resolutions@safesport.org. The timing of a Temporary Measures hearing or pre-hearing conference can be waived by the parties' agreement which shall be in writing and submitted to the Center and the arbitration body.

3. Arbitrator

If the Center imposes Temporary Measures before the appointment of a merits Arbitrator on a Notice of Decision, then a Temporary Measures Arbitrator will be appointed by the arbitration body solely to conduct the Temporary Measures hearing. This Temporary Measures Arbitrator shall not be considered for appointment to review a Notice of Decision as a merits Arbitrator. If the Center imposes Temporary Measures after the appointment of a merits Arbitrator for review of a Notice of Decision, then the appointed merits Arbitrator shall conduct the Temporary Measures hearing.

4. Filing Fees and Expenses

The arbitration body shall prescribe filing and other administrative fees and expenses to compensate it for the cost of providing services. The fees in effect when the fee or charge is incurred shall be applicable. The Center and the Respondent shall pay fees and expenses associated with a Temporary Measures hearing as set forth in Exhibit 1. The Respondent shall

¹⁸ A Temporary Measures hearing may only be requested as to a Temporary Measure that is presently imposed.

not be responsible for filing fees if qualifying for a Hardship Exemption. If payment or hardship application is not submitted within 5 Days following the request for a Temporary Measures hearing, the Center will issue a notice of failure to pay and the request for the Temporary Measures hearing is deemed withdrawn without prejudice.

5. Additional Rules

The following Arbitration Rules (Section XIV.) apply to Temporary Measures hearings:

- a. Rule 1 – Application
- b. Rule 3 – Arbitrator Qualifications
- c. Rule 6 – Confidentiality
- d. Rule 8 – Number of Arbitrators
- e. Rule 10 – Notice to Arbitrator of Appointment
- f. Rule 11 – Jurisdiction and Conflicts of Interest
- g. Rule 12 – Vacancies
- h. Rule 13 – Submissions to and Communications with Arbitrator
- i. Rule 15 – Procedural Due Process
- j. Rule 22 – Interpreters
- k. Rule 26.f. – Rules of Evidence
- l. Rule 27 – Evidence by Affidavit
- m. Rule 28.g. – Hearing Closed to the Public
- n. Rule 28.h. – Closing of Hearing
- o. Rule 29 – Waiver of Rules
- p. Rule 31 – Notice and Receipt
- q. Rule 35 – Filing Fees and Expenses
- r. Rule 36 – Other Fees and Expenses

- s. Rule 39 – Interpreting and Applying Rules

6. Procedures

- a. Scope of Hearing

The Temporary Measures hearing is an expedited proceeding to solely address the appropriateness of the Temporary Measures imposed by the Center. The Temporary Measures hearing is not a hearing to resolve whether the Respondent has committed a violation or what the appropriate Sanction(s) should be if a violation is found to have occurred.

- b. Pre-hearing Conference

The Arbitrator shall hold a brief pre-hearing conference to address scheduling of the Temporary Measures hearing. Any allegations that the Center failed to conform with its processes under the Code or obligations under 36 USC § 220541(a)(1)(H) must be raised at the pre-hearing conference. The process set out in XIV.15 shall apply.

- c. Parties & Attendance

The parties to the Temporary Measures hearing will be the Center and the Respondent. The Center's representatives, Respondent, and the Respondent's Advisor(s), and/or Support Person may be present at the hearing.

The Respondent's Advisor(s), if any, may participate in the pre-hearing conference, confer with the Respondent during the hearing, clarify procedural questions, and present arguments on behalf of the Respondent.

The Respondent's Support Person may be present during the pre-hearing conference and Temporary Measures hearing but may not participate in any way.

- d. Position Statements

The Center and Respondent may each submit a position statement of no more than 10 pages, excluding exhibits which shall not contain any additional argument, setting forth the basis for their respective positions. Each party may also present such documentary evidence as it deems necessary.

- e. Hearing

The hearing shall consist solely of oral argument; no testimony from witnesses, including Respondent, will be allowed.

The hearing shall occur telephonically absent good cause as determined by the Arbitrator. Except in exceptional circumstances, the Temporary Measures hearing will last no longer than two hours.

f. Standard of Review

The Arbitrator shall resolve whether sufficient information exists to satisfy the Arbitrator that the Temporary Measures as imposed are reasonably appropriate to mitigate risk based on the known circumstances of the case at the time of the hearing. In all cases, there shall be a rebuttable presumption that the allegations, as presented, are true. When the allegations involve child sexual abuse, the age of those allegations shall not be considered and are not relevant to the assessment of Temporary Measures.

The Arbitrator may only approve, reject, or modify the Temporary Measures imposed or proposed by the Center. In doing so, the Arbitrator shall consider the following: (i) the seriousness of the allegations and the circumstances of the case; (ii) the Respondent's continued participation in sport poses an ongoing or potential risk to the physical, emotional, or psychological well-being or safety of others, including but not limited to the Claimant, other Athletes, or the sport community; or (iii) the allegations against the Respondent are sufficiently serious that the Respondent's continued participation in the sport could be detrimental to the best interest of sport and those who participate in it.

g. Temporary Measures Decision

The Temporary Measures Decision shall be based on the parties' position statements and oral argument. The Arbitrator shall issue a Temporary Measures Decision regarding the Temporary Measures either orally at the conclusion of the hearing, with a written reasoned order to follow, or by a written reasoned order issued within 24 hours of the close of the Temporary Measures hearing, unless an extension is agreed upon by the parties at the conclusion of the Temporary Measures hearing. The Temporary Measures Decision is inadmissible and shall be given no weight in a merits arbitration on the Notice of Decision, if any.

h. No Appeal

Neither the Center nor the Respondent may appeal the Arbitrator's Temporary Measures Decision, except as permitted in Section XII.B.6.i. below. The denial of the requested relief shall not, however, prejudice the Center's right to seek Temporary Measures in the same case in the future based on information or evidence not previously in the Center's possession. In such cases, the Respondent may request another hearing to address only the modified Temporary Measure(s). Absent the Center modifying the Temporary Measures after the Arbitrator's Temporary Measures Decision, the Respondent will not be entitled to a subsequent Temporary Measures hearing.

i. Request for Reconsideration

The Arbitrator may not impose any deadlines upon the Center by which a final Notice of Decision must be rendered. However, the Respondent may file one written request for reconsideration of the Arbitrator's Temporary Measures Decision no sooner than 120 calendar days following the Temporary Measures hearing. The written request for reconsideration shall be no longer than 5 pages, excluding exhibits. The Respondent shall bear the burden of establishing good cause as to why the Arbitrator's Temporary Measures Decision should be modified. The Center will be afforded 5 Days to respond in writing. No oral argument shall be held. The Arbitrator shall issue an order either granting or denying the Respondent's request for reconsideration within 5 Days following receipt of the Center's written reply. The Arbitrator's order concerning the request for reconsideration is not appealable by either party.

C. **By the USOPC, NGB, or LAO**

Upon the Center's issuance of a Notice of Exercise of Jurisdiction, any Temporary Measures previously imposed by the USOPC, NGB, or LAO will be automatically and immediately adopted by the Center as its own, and will be applicable throughout all Olympic, Paralympic, Pan American and Para Pan sports in the United States, and will remain in effect unless and until the Center modifies those measures.

XIII. SANCTIONS

Where there is sufficient evidence through the resolution procedure to support a finding that a Participant violated the Code, the Center will determine whether or the extent to which a Participant may participate in sport and may impose one or more Sanctions. Different incidents constituting a violation of the same policy may arise out of markedly different circumstances, including various case-specific aggravating or mitigating factors.

A. **Sanctions**

One or more of the following Sanctions may be imposed singularly or in combination:

- *Written warning*
An official, written notice and formal warning that a Participant has violated the Code and that more severe Sanctions will result should the Participant be involved in other violations.
- *Probation*
A specified period of time during which, should any further violations of the Code occur during the probationary period,

it will result in additional disciplinary measures, likely including a period of Suspension or Ineligibility. This Sanction can also include loss of privileges or other conditions, restrictions, or requirements.

- *Suspension or other eligibility restrictions*

Suspension for a specified period of time from participation, in any capacity, in any program, activity, Event, or competition sponsored by, organized by, or under the auspices of the USOPC, any NGB, or any LAO, or at a facility under the jurisdiction of the same. In the Center's discretion, a Suspension may include restrictions or prohibitions from some types of participation but allowing participation in other capacities.

A Suspended Participant is eligible to return to sport after the Suspension lapses, but reinstatement may be subject to certain restrictions or contingent upon the Participant satisfying specific conditions noted at the time of Suspension.

- *Ineligibility*

Ineligibility to participate until further notice, in any capacity, in any program, activity, Event, or competition sponsored by, organized by, or under the auspices of the USOPC, any NGB, or any LAO, or at a facility under the jurisdiction of the same. Ineligibility is typically imposed when a Respondent has pending charges, in violation of the Criminal Charges or Disposition provision.

- *Permanent Ineligibility*

Permanent ineligibility from participating, in any capacity, in any program, activity, Event, or competition sponsored by, organized by, or under the auspices of the USOPC, any NGB, or any LAO or at a facility under the jurisdiction of the same.

- *Other discretionary Sanctions*

The Center may, in its discretion, impose other Sanctions for Prohibited Conduct, including, but not limited to, other loss of privileges, no contact directives, requirement to complete educational or other programs, or other restrictions or conditions as deemed necessary or appropriate.

B. Considerations

Factors relevant to determining appropriate Sanctions include, without limitation:

1. The Respondent's prior history;
2. A pattern of inappropriate behavior or misconduct;
3. The ages of individuals involved;

4. Whether the Respondent poses an ongoing or potential threat to the safety of others;
5. Respondent's voluntary disclosure of the offense(s), acceptance of responsibility for the misconduct, and cooperation in the Center's process;
6. Real or perceived impact of the incident on the Claimant, the USOPC, NGB(s), LAO(s), or the sporting community;
7. Whether given the facts and circumstances that have been established, continued participation is in the best interest of the Movement;
8. When assessing a Criminal Charge or Disposition, the Center may consider the underlying allegations, the original charges, any amended charges, or those to which a plea was entered;
9. Any relevant mental or physical condition or disability; or
10. Other mitigating and aggravating circumstances.

Any single factor, if severe enough, may be sufficient to justify the Sanction(s) imposed.

C. Publication

The Center is required under 36 USC § 220541(a)(1)(G) to maintain a publicly available and searchable database of Adult Participants whose eligibility has in some way been restricted by the Center, the USOPC, an NGB, or an LAO.

XIV. ARBITRATION RULES

1. Application

These Rules shall apply to arbitrations arising out of the Code. No other arbitration rules shall be applicable. Each Participant, by virtue of membership, affiliation, or participation or other activity making them subject to the jurisdiction of the Center, agrees to abide by and be subject to these Arbitration Rules as the sole and exclusive method of resolving any challenge to the Center's eligibility decision(s) or the Center's processes.

2. Scope

Arbitration shall resolve whether a Respondent violated the Code and the appropriate Sanction.

3. Arbitrator Qualifications

The pool of Arbitrators for the Center's cases shall consist of individuals who are U.S. citizens and meet the SafeSport Arbitrator Qualifications (Exhibit 2), as determined by the arbitration body. All Arbitrators in the Center's Arbitrator pool will receive specialized training (Exhibit 2), including but not limited to completion of the SafeSport® Trained Core Course or Refresher Course(s) as required for Adult Participants.

4. Parties

The parties to the Arbitration will be the Center and the Respondent. A reference to the parties, the Center, the Respondent, or the Claimant will include any parent or guardian of a Minor, unless otherwise stated herein.

5. Advisor

The Respondent's Advisor(s), if any, may participate in the pre-hearing conference, confer with the Respondent during the hearing, clarify procedural questions, present opening and closing arguments on behalf of the Respondent, suggest questions to the Respondent and the Arbitrator during witness examinations, or to the extent direct examination by the parties is permitted, question witnesses on behalf of the Respondent.

A Claimant or Respondent intending to have an Advisor shall notify the Center and the arbitration body of the name and address of the Advisor a minimum of 24 hours before the date set for the hearing or other proceeding at which the Advisor is first to appear. The parties are responsible for keeping the arbitration body informed of any changes in Advisors. Notice given to a designated Advisor shall be deemed notice to the advisee. A Claimant may have an Advisor(s) and/or a Support Person, and, if necessary, an interpreter as outlined in XIV.22. present at every stage of the Center's processes.

6. Confidentiality

The arbitration, including all pre-hearing matters, shall be subject to the confidentiality provisions set forth in the Code and other confidentiality policies adopted by the Center.

7. Initiating Arbitration

After receiving a request for an Arbitration hearing, the Center will send a notice to the Respondent and the Arbitration administrator informing them that an Arbitration has been initiated and requesting confirmation of an email address to which notice will be deemed received upon mailing to such address. The notice shall set forth (i) the alleged violation; (ii) the

Sanction determined by the Center; (iii) the recipient's confidentiality obligations; and (iv) that any recipient who violates confidentiality obligations shall be subject to the jurisdiction of the Center and may be held, after proper process, to have violated the Code. The Arbitration will be deemed initiated upon receipt by the administrator of the necessary fees and issuance of the Commencement Notice, which is the formal confirmation of the arbitration.

Claimants do not have a right to request arbitration.

Matters involving more than one Claimant or more than one Respondent may, in the Center's discretion, be consolidated into a single matter.

8. Number of Arbitrators

There shall be one Arbitrator.

9. Arbitrator Appointment – Merits Arbitration

- a. No later than 3 Days after receipt of payment by the arbitration body, the Arbitration body will send simultaneously to Respondent and the Center an identical list of nine Arbitrators, all of whom shall be attorneys or retired judges. The parties are encouraged to agree to an Arbitrator from the submitted list and to advise the Arbitration body of their agreement.
- b. No longer than 2 Days after issuance of the Commencement Notice, the Center and the Respondent each may strike the names of up to two Arbitrators from the list and return the list to the Arbitration body. If a party does not return a strike list within the time specified, all persons named in the list shall be deemed acceptable to that party. The names stricken by a party will not be disclosed to the other party.
- c. From among the persons not stricken by the parties, the Arbitration body shall invite an Arbitrator to serve. If, for any reason, an Arbitrator cannot be appointed from the submitted lists, the Arbitration body shall have the power to make the appointment from among the other attorneys or retired judges of the pool, not to include any Arbitrator previously stricken by a party. In all cases, the Arbitration body shall appoint an Arbitrator within 5 Days of receipt of the strike lists.

10. Notice to Arbitrator of Appointment

Notice of the appointment of the Arbitrator, whether appointed by the parties or by the Arbitration body, shall be sent to the Arbitrator by the Arbitration body, together with a copy of these Rules. A signed acceptance by the Arbitrator shall be filed with the Arbitration body.

11. Jurisdiction and Conflicts of Interest

a. Jurisdiction

The Arbitrator shall have the power to rule on the arbitration body's jurisdiction, including any objections with respect to the existence, scope or validity of the Arbitration agreement. Any challenges to the Arbitrator's jurisdiction must be made in the position statement and shall be decided at or before the commencement of the hearing.

b. Conflicts of Interest

Any person appointed as an Arbitrator shall disclose to the arbitration body any circumstance that could affect impartiality or independence, including any bias, any financial or personal interest in the result of the Arbitration, or any past or present relationship with the parties or witnesses.

The arbitration body shall communicate any information concerning a potential conflict of interest to the relevant parties and, as appropriate, to the Arbitrator.

A party may file an objection with the Arbitration body contesting an Arbitrator's continued service due to a conflict of interest. Upon receiving an objection, the arbitration body shall determine whether the Arbitrator should be disqualified and shall inform the parties of its decision, which shall be conclusive. The parties may agree in writing that an appointed Arbitrator subject to disqualification will not be disqualified.

c. Replacing a Conflicted Arbitrator

If the arbitration body determines that a selected Arbitrator has a conflict of interest with one of the parties and the parties do not agree to waive the conflict, then the arbitration body shall select a substitute Arbitrator from the remaining attorneys or retired judges not stricken by the parties. If the appointment cannot be made from the list, the arbitration body shall have the power to make the appointment from among other attorneys or retired judges in the Arbitrator pool without the submission of additional lists, not to include any Arbitrator previously stricken by a party.

12. Vacancies

If an Arbitrator is no longer able to hear a case for which the Arbitrator has been appointed, the arbitration body shall select a substitute Arbitrator from the remaining attorneys or retired judges not stricken by the parties. If the appointment cannot be made

from the list, the arbitration body shall have the power to make the appointment from among the other attorneys or retired judges of the full Arbitrator pool without the submission of additional lists, not to include any Arbitrator previously stricken by a party.

13. Submissions to and Communication with Arbitrator

Except as provided herein, no party shall communicate unilaterally concerning the arbitration with an Arbitrator or a candidate for an Arbitrator position. Any documents submitted by any party to the arbitration body or to the Arbitrator (with the exception of Arbitrator strike lists and, when appropriate, *ex parte* submission of witness questions) shall simultaneously be provided to the other party or parties to the arbitration.

14. Hearing Concerning Sanctions and *Per Se* Code Violations

If a Respondent requests a hearing concerning only the Center's Sanction(s), or regarding a Criminal Charge or Disposition (Section IX.A.) or Abuse of Process (Section IX.H.2.), the following rules apply:

a. Scope

The violation and the underlying facts will be deemed established and irrebuttable. The Arbitrator will determine whether the Center's Sanctions are appropriate given the facts and circumstances, as established.

b. Standard of Review

The Arbitrator is authorized to modify the Sanction only upon finding that the Center abused its discretion.

c. Briefing

Within 10 Days of the Arbitrator's appointment, the Respondent shall file a position statement setting forth the basis for the challenge to the Sanction. Within 7 Days of the Respondent's filing, the Center shall file its position statement.

d. Oral argument

The Arbitrator's Decision shall be based on the parties' briefs, the Notice of Decision. However, the Arbitrator may in the Arbitrator's discretion allow for oral argument.

e. Decision

The Arbitrator will render a final and binding written Arbitration Decision to all parties within 5 Days from briefing, or if oral argument is allowed, within 5 Days of oral argument.

15. Procedural Due Process

The SafeSport Code and 36 USC § 220541(a)(1)(H) provide a Respondent with certain procedural due process protections. A Respondent who alleges violations of these rights can raise the claim before the Arbitrator only if the Respondent has previously informed the Center of the alleged violation and given the Center a reasonable opportunity to cure the violation. An Arbitrator can order a party to take any reasonable steps necessary to cure the violation, except for dismissal of the action.

16. Pre-Hearing Conference

- a. The Arbitrator shall schedule as soon as practicable a preliminary pre-hearing conference with the parties by telephone or video conference, but no sooner than 10 calendar days and no later than 14 calendar days after the Arbitrator is appointed. If any party is requesting an audio or video recording of the pre-hearing conference or arbitration, that party shall include this request in writing within 7 calendar days after appointment of the Arbitrator.
- b. Within 7 calendar days after appointment of the Arbitrator, the Respondent shall provide the Center and arbitration body with a written answer to the Center's Notice of Decision against them (to include a written statement containing Respondent's summary of the factual rebuttal to the violation and the defenses the Respondent intends to raise at the arbitration) and the documentary evidence and witnesses that the Respondent intends to present at the hearing, including a short summary of the expected testimony of such witnesses.
 - i. Any evidence included in the Respondent's written answer that was available to the Respondent during the Center's investigative process but not made available to the Center prior to the issuance of the Notice of Decision, including but not limited to testimonial or documentary evidence, shall be inadmissible and not considered by the Arbitrator.
 - ii. If a proposed witness refuses to be interviewed by the Center, the Arbitrator shall preclude the witness from testifying or otherwise providing evidence at the hearing.
- c. The pre-hearing conference will be directed by the Arbitrator and shall be the exclusive opportunity of the parties to address issues that need to be resolved before the hearing, including, but not limited to:
 - i. The timeline for the exchange of briefs, list of evidence, and list of witnesses. The briefs shall address any expected evidentiary issues, challenges to jurisdiction, and any other disputed issues. Unless otherwise agreed upon by the

parties the Center's opening brief is due 21 calendar days after the pre-hearing conference, Respondent's response brief is due 14 calendar days after the filing of the Center's opening brief, and the Center's reply brief is due 7 calendar days after the filing of the Respondent's response brief.

- ii. The scheduling and logistics of the hearing, to include without limitation the amount of time each side will have to present their evidence. Absent exceptional circumstances, the Arbitrator will schedule the hearing to be completed within a single, eight-hour day. The Arbitrator may schedule more than one pre-hearing conference only if the Arbitrator determines that an additional conference is necessary.
- iii. The Arbitrator shall issue a written order that memorializes decisions made and agreements reached during or following the pre-hearing conference.

17. Discovery

Respondents will receive from the Center a Notice of Decision, Investigation Report, and any exhibits to the Investigation Report, redacted for any personally identifying information. There shall be no additional discovery.

18. Date and Time of Hearing

The Arbitrator shall use best efforts to ensure that the hearing is completed within 10 calendar days of the filing of Center's reply brief, unless otherwise agreed by the parties.

Although the Arbitrator shall make reasonable accommodations to the parties and their Advisors with regard to scheduling, the parties and their Advisors have a duty to be reasonably available to ensure the ability of the arbitration process to render a reasonably prompt result. The Arbitrator, in the Arbitrator's sole discretion, may rule that the unavailability of a party's Advisor is not grounds for postponing the hearing.

Failure by the Arbitrator or the Center to adhere to the timelines set forth herein shall not be grounds for overturning the Arbitration Decision.

19. Place of Hearing

The hearing will be conducted telephonically or by videoconference except as authorized by the Arbitrator in extraordinary circumstances, in which case the hearing may be held in person at a location in the United States determined by the Arbitrator. If a hearing is held in person, the Arbitrator may nonetheless permit Claimant(s) or witness(es) to appear behind screens, by

telephone or via videoconference. For all hearings, whether in person, telephonically, or by videoconference, the seat of the arbitration shall be Denver, Colorado.

20. Attendance

Unless the Arbitrator and the parties agree otherwise, only the following individuals shall be present at the hearing: (1) the Center's representatives; (2) the Respondent; (3) the Claimant(s); (4) the Claimant(s) and Respondent's respective Advisor(s) and/or Support Person; and (5) witnesses during their own testimony.

The Claimant(s) and their Advisor(s) and/or Support Person have a right to be present at all times during the hearing.

21. Oaths

Before proceeding with the hearing, each Arbitrator will take an oath of office if required by law. The Arbitrator will require witnesses to testify under oath if it is required by law.

22. Interpreters

All arbitration proceedings shall be conducted in English. Any party who would like an interpreter is responsible for coordinating directly with the interpreter and is responsible for the costs of the interpreter service absent a hardship exemption. The interpreter must be free of conflicts of interest and approved by the Center.

23. Continuance

The Arbitrator may continue any hearing upon agreement of the parties, upon request of a party, or upon the Arbitrator's own initiative. Unless agreed, postponements shall be discouraged and only granted in compelling circumstances. A party or parties causing a postponement of a hearing will be charged a postponement fee, as set forth in the arbitration fee schedule.

24. Arbitration in the Absence of a Party or Advisor

Subject to Section XI.J., the arbitration may proceed in the absence of any party or Advisor who, after notice, fails to be present or to obtain a postponement. The Arbitrator shall require the party who is present to submit evidence the Arbitrator may require for an Arbitration Decision.

25. Standard of Proof

The Arbitration shall use a preponderance of the evidence standard to determine if a Participant has violated the Code.

26. Rules of Evidence

- a. Strict conformity to legal rules of evidence shall not be necessary, and hearsay evidence may be considered.
- b. The Center's Notice of Decision and Investigative Report with Appendices shall be admitted into evidence and the Arbitrator shall give them appropriate weight.
- c. The Arbitrator shall determine the admissibility, relevance and materiality of the evidence offered and may exclude evidence deemed by the Arbitrator to be cumulative, irrelevant or unreliable.
- d. The Arbitrator shall take into account applicable principles of privilege, including without limitation those involving the confidentiality of communications between an attorney and client and between a physician and patient.
- e. Any statement from a Minor, be it written, recorded or live, and whether direct or hearsay, shall be admissible except as provided in Section XIV.26.f.
- f. Evidence relating to other sexual behavior or the sexual predisposition of the Claimant cannot be admitted as evidence in any arbitration unless the probative value of the use or admission of such evidence, as determined by the Arbitrator, substantially outweighs the danger of—
 - i. any harm to the alleged victim; and
 - ii. unfair prejudice to any party.
- g. An Arbitrator's Temporary Measures Decision is inadmissible and shall be given no weight in a merits arbitration on the Notice of Decision, if any.
- h. Any evidence of an offer or proposal by the Center or a Respondent to resolve a matter with a Conditional, Alternative, or Informal Resolution, including Sanctioning or other term(s), and any statement(s) made in connection with any such offer or proposal are not admissible and shall be given no weight in a merits arbitration on the Notice of Decision, if any.

27. Evidence by Affidavit

The Arbitrator may receive and consider the evidence of witnesses, Claimants, or Respondents by declaration or affidavit and

shall give it such weight as the Arbitrator deems appropriate after considering any objection made to its admission.

28. Hearing

Unless the parties agree that the Arbitrator can determine the case without an oral hearing and on written briefing alone (which the parties may do whether the matter relates to liability and Sanctions or Sanctions only), the Arbitrator will hold an oral hearing.

a. Arbitrator to Manage Proceedings Expeditiously

The Arbitrator, exercising discretion, shall conduct the proceedings expeditiously and may direct the order of proof, bifurcate the hearing between the violation and Sanction portions of the hearing, and direct the parties to focus their presentations on issues the decision of which could dispose of all or part of the case.

b. Opening Statements

Each party shall be entitled to present a concise opening statement prior to the presentation of evidence. The Center or its Advisor shall present its opening statement first, followed by the Respondent.

c. Presenting Evidence

Both the Center and the Respondent shall be entitled to an equitable amount of time to present evidence in support of or in opposition to the alleged violations, as determined by the Arbitrator at the pre-hearing conference. Absent exceptional circumstances, the parties will be expected to complete the hearing in a single, eight-hour business day. The Arbitrator will track the time used by each party during the course of proceedings and enforce the time limits to ensure equitable time to both parties. The parties will be permitted, subject to any pre-hearing orders, to present documentary evidence through the submission of exhibits and to present testimony through affidavit or in-person testimony of witnesses.

The Center will present its evidence first. The Respondent will present its evidence second. The Center may then present any rebuttal evidence.

d. Examining Witnesses

1. The Claimant shall be subject to questioning by only the Arbitrator unless the Claimant agrees to direct examination and cross-examination by the opposing party.

2. Unless the Claimant elects to be questioned directly by the parties, within 7 calendar days of the filing of Respondent's response brief, the Center and the Respondent each may submit, *ex parte* to the Arbitrator, proposed questions and lines of inquiry for the questioning of the Claimant. The Arbitrator will review the submitted questions and lines of inquiry and will, in the Arbitrator's discretion, determine which are appropriate and relevant based on the understanding of the matter and to ensure the Arbitrator's ability to render a decision in the matter. The Arbitrator also may ask other questions which the Arbitrator deems appropriate.
3. If the Arbitrator has been the sole questioner of the Claimant, then after the Arbitrator's direct questioning of the Claimant is completed, the witness will be temporarily excluded from the hearing so that the Arbitrator can discuss with each of the parties separately appropriate follow-up questions or supplemental lines of inquiry for the Arbitrator to consider. The Arbitrator will ask follow-up questions of the witness that the Arbitrator deems appropriate.
4. The parties may question all other witnesses directly, provided that the Arbitrator shall have the authority to limit questioning of witnesses or lines of inquiry based on, without limitation, relevance, that the questioning is cumulative, the age or mental capacity of the witness, or that the questioning has become harassing or abusive.
5. Examining Minors – the presumption is that a Minor will not testify live at a hearing; however, with the permission of the Minor's parents or guardians (or in extraordinary circumstances, without such permission), the Minor may testify if so desired.

The Arbitrator shall determine the manner in which Minor's evidence shall be given, including whether any or all questioning of the Minor (live or via video) will be completed outside the presence of their parent(s) or guardian(s), bearing in mind (a) the objective of achieving a fair hearing, (b) the possible damage to a Minor's welfare from giving evidence, and (c) the possible advantages that the Minor's evidence will bring to determining the facts.

A Minor may only be asked to testify in exceptional circumstances as determined by the Arbitrator. In making this decision, the Arbitrator shall consider:

- a. the Minor's wishes and feelings, in particular, the Minor's willingness to give evidence (an unwilling Minor should rarely, if ever, be obligated to give evidence);
- b. the Minor's particular needs and abilities;
- c. whether the case depends on the Minor's allegations alone;
- d. corroborative evidence;

- e. the age of the Minor;
- f. the maturity, vulnerability, understanding, capacity and competence of the Minor;
- g. whether a matter can be properly adjudicated without further questioning of the Minor;
- h. the wishes and views of any parent, person with parental responsibility for the Minor, or any guardian, if appropriate; and
- i. whether the Minor has given evidence to another tribunal or court related to the subject matter of the proceeding, the way in which such evidence was given, and the availability of that evidence.

e. Role of the Claimant

The Claimant is not a party but has the right to be present during the hearing along with their Advisor(s) and/or a Support Person. A Claimant may give testimony as a witness if called, but shall not otherwise participate in the hearing.

f. Closing Statements

Each party will be entitled to present a concise closing statement after the close of evidence and before the hearing is concluded. The Center will present its closing statement first, followed by the Respondent, and the Center will be allowed time for a reply.

g. Hearing Closed to the Public

The hearing shall be closed to the public.

i. No Disclosure of Information

All documentary information obtained by the Center, Respondent, or the Claimant exclusively through the arbitration, including the Arbitration Decision, shall be deemed confidential not to be disclosed outside of the Center's process except as expressly provided herein.

ii. Recording

At the request of any party or the Arbitrator, hearings shall be recorded by the arbitration body and retained by the Center in its confidential files, but shall not be made available to any party or third party except as determined by the Center or

any lawful order of a Court. The requesting party is responsible for arranging and paying for the recording.

h. Closing of Hearing

- i. After all evidence has been submitted at the hearing, the Arbitrator shall specifically inquire of each party whether it has any further evidence to offer or witnesses to be heard. Unless the Arbitrator determines that additional evidence or witness(es) are required to resolve the controversy, the Arbitrator will declare the hearing closed
- ii. There shall be no post-hearing briefing ordered except in exceptional circumstances. If documents or responses are to be filed as directed by the Arbitrator, or if briefs are to be filed, the hearing shall be declared closed as of the final date set by the Arbitrator for the receipt of briefs.

29. Waiver of Rules

Any party who proceeds with the arbitration after knowledge that any provision or requirement of these Rules has not been complied with and who fails to promptly state an objection in writing shall be deemed to have waived the right to object to such noncompliance.

30. Extensions of Time

For good cause shown, the Arbitrator may extend any period of time established by these Rules, except the time for rendering the Arbitration Decision, keeping in mind the need to resolve these disputes expeditiously; the unavailability of an Advisor—after an Arbitrator’s efforts to reasonably accommodate the Advisor’s schedule—shall not be considered good cause except in exceptional circumstances. The Arbitrator shall notify the parties of any extension.

31. Notice and Receipt

The parties each must provide an email address to the arbitration body and opposing parties/Advisors upon initiation of an arbitration under the Rules. Notice sent to that email address shall be considered actual notice to the party effective upon delivery.

32. Arbitration Decision

a. Time

A reasoned Arbitration Decision shall be made promptly by the Arbitrator after the close of evidence, and, unless otherwise

agreed by the parties or specified by law, no later than 14 calendar days from the date of close of the evidence or any briefing ordered by the Arbitrator. To allow the Center sufficient time to arrange to share the outcome with the Claimant(s), the arbitration body will initially transmit the Arbitration Decision to the Center. Four hours later, the Center shall share the outcome with the Claimant(s) and the arbitration body shall transmit the Arbitration Decision to the Respondent(s).

b. Form

In all cases, the Arbitrator shall render a written, reasoned final Arbitration Decision, which shall be signed by the Arbitrator. All identifying information of the Claimant (including name), and witnesses (other than the Respondent) shall be redacted. If the Arbitrator determines that there has been no violation, then the Respondent may request that the Arbitrator redact their name or identifying information in the Arbitration Decision.

c. Scope

The Arbitrator may grant such remedy or relief the Arbitrator deems just and equitable and within the scope of the Code and the Sanctioning Considerations.

d. Delivery to parties

The Arbitration Decision shall be deemed delivered to the parties if transmitted as provided in these Rules.

33. Modifying the Arbitration Decision

Within three Days after the transmittal of the Arbitration Decision, any party, upon notice to the other parties, may request the Arbitrator, through the arbitration body, only to correct any clerical, typographical, or computational errors in the Arbitration Decision. The Arbitrator is not empowered to re-determine the merits of any matter already decided. The other parties shall be given two Days to respond to the request. The Arbitrator shall dispose of the request within two Days after transmittal by the arbitration body to the Arbitrator of the request and any response thereto.

34. No Appeal

The Arbitration Decision shall be considered final and binding. The parties waive, to the fullest extent permissible by law, any right to challenge in court the Arbitrator Decision.

35. Filing Fees and Expenses

a. The arbitration body shall prescribe filing and other administrative fees and expenses to compensate it for the cost of providing services. The fees in effect when the fee or charge is incurred shall be applicable. See Exhibit 1.

b. Initiating arbitration

i. Arbitration fees and expenses

The Respondent shall pay a full deposit for all fees and expenses associated with the arbitration as set forth in Exhibit 1. If, within 30 calendar days of the request for arbitration, the Respondent fails to provide the deposit, the Center or the arbitration body will issue a notice of failure to pay. If payment is not made within 5 Days after the notice of failure to pay is issued, or an extension is not granted, then the opportunity to request arbitration lapses and the Notice of Decision is final.

ii. Hardship exemption

Respondents may, at the discretion of the Center, obtain a hardship exemption from payment of some of these fees through written certification that they have insufficient funds to cover arbitration.

36. Other Fees and Expenses

The expenses of witnesses for any party shall be paid by the party producing such witnesses. Parties shall be responsible for their own Advisor's fees and costs, and all other expenses not expressly assumed by the Center. A party who successfully seeks a continuance shall pay a continuance fee as set forth in Exhibit 1.

37. Arbitrator's Compensation

Arbitrators shall be compensated at the rates set forth in the arbitration fee schedule (Exhibit 1).

If there is disagreement concerning the terms of compensation, an appropriate rate shall be established with the Arbitrator and the arbitration body, and confirmed to the parties. Any arrangement for the compensation of an Arbitrator shall be made through the arbitration body and not directly between the parties and the Arbitrator.

38. Allocating Fees and Expenses

The Arbitrator shall, in the final reasoned Arbitration Decision, allocate fees and expenses as follows:

- a. If a violation is not found, the Center shall reimburse the Respondent for all arbitration fees and expenses paid to the arbitration body, pursuant to Exhibit 1, below.
- b. If the case involves multiple violations, and the Arbitrator modifies some violations but not all, the Arbitrator has the discretion to allocate the fees and expenses paid to the arbitration body.
- c. If, in a Sanctions-only hearing, the Sanction is reduced the Arbitrator may reapportion responsibility for all arbitration fees and expenses paid to the arbitration body between the Center and the Respondent.

39. Interpreting and Applying These Rules

The Arbitrator shall interpret and apply these Rules insofar as they relate to the Arbitrator's powers and duties.

Exhibit 1

JAMS ARBITRATION FEES

The arbitration body for U.S. Olympic and Paralympic SafeSport Arbitrations is JAMS, www.jamsadr.com. Applicable arbitration fees are as stated, effective April 1, 2023.

- \$5,200.00 Single Arbitrator for a single hearing day. Additional hearing days will be billed to the U.S. Center for SafeSport at \$650 per hour.
- \$2,600.00 Single Arbitrator, Temporary Measures hearing:

CANCELLATION/CONTINUANCE POLICY

<i>Cancellation/Continuance period</i>	<i>Fee</i>
14 or more calendar days prior to hearing	• Arbitration, single Arbitrator, 50% is refundable • Temporary Measures Hearing, non-refundable

- A deposit for the full price of JAMS fees and neutral rates is due at the time an Arbitration is requested. Any refunds are subject to the cancellation/continuance policy listed below.
- Applicable Arbitrator travel costs will be charged.
- The above fees exclude usage of facilities. A room rental fee not to exceed \$300/day will be charged.
- For Temporary Measures hearings, the Center shall pay \$2,000 and the Respondent shall pay \$600.
- Hearing fees are non-refundable if time scheduled (or a portion thereof) is cancelled or continued after the cancellation date. The cancellation policy exists because time reserved and later cancelled generally cannot be replaced. In all cases involving non-refundable time, the party requesting the hearing is responsible for the fees of all parties.
- JAMS reserves the right to cancel the hearing if fees are not paid as required by the applicable cancellation date and JAMS confirms the cancellation in writing.

Exhibit 2
SafeSport Arbitrator Qualifications

INDEPENDENCE

Each Arbitrator shall be independent. An Arbitrator is “independent” if (a) the individual has no current, material affiliation or relationship, directly or indirectly, with the United States Center for SafeSport, the United States Olympic & Paralympic Committee (USOPC), any National Governing Body (NGB), any Paralympic Sports Organization (PSO), the Athletes Advisory Council of the USOPC (AAC), or any other affiliated organization such as an Olympic Training Center or designated partner, and (b) such person is free of any direct or indirect relationships that create an actual or perceived conflict of interest that could reasonably be expected to interfere with the exercise of independent judgment of such person. Before an Arbitrator may be selected for the JAMS SafeSport Panel, the individual shall disclose any potential conflicts of interests to JAMS.

KNOWLEDGE

In addition to independence, Arbitrators shall have a demonstrated working knowledge of sexual assault, domestic violence, child abuse (including child sexual abuse), grooming, trust dynamics, and trauma-informed questioning/forensic interviewing protocol. Experience involving emotional, physical, and sexual misconduct in sport is strongly preferred.

WORKING EXPERIENCE

Arbitrators shall be an attorney with experience working in at least one of the following areas:

- In criminal law as a judge, district attorney, or defense attorney, with specific experience in sexual misconduct and trauma-sensitive practices;
- Law enforcement, with specific experience in sexual misconduct;
- As a social worker;
- A Title IX coordinator or investigator;
- As a guardian *ad litem*; or
- Other comparable working experience.

CONTINUING EDUCATION

Arbitrators shall demonstrate, upon request by the Center, completion of Continuing Legal Education (CLEs) courses related to sexual assault, domestic violence, child abuse (including child sexual abuse), grooming, trust dynamics, and trauma-informed

questioning/forensic interviewing protocol.